



Parliamentary Right of Inquiry

Argentina • Australia • Brazil • Egypt • India • Israel
Japan • Mexico • Norway • South Africa
Switzerland • Turkey

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Contents

Comparative Summary	1
Argentina.....	2
Australia	7
Brazil	15
Egypt.....	22
India	27
Israel.....	33
Japan	39
Mexico.....	47
Norway	50
South Africa	57
Switzerland	64
Turkey.....	69

Comparative Summary

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This report, prepared by foreign law specialists of the Law Library of Congress, surveys the laws and practices of Argentina, Australia, Brazil, Egypt, India, Israel, Japan, Mexico, Norway, South Africa, Switzerland, and Turkey on the investigative powers of parliaments, with particular focus on parliamentary committees of inquiry—select committees specially established and commissioned to investigate particular subjects.

The country surveys address whether the country's parliament has the authority to create committees of inquiry; whether they may investigate any matter of concern or only limited topics; whether investigating matters subject to pending legal proceedings is allowed; whether they have authority to conduct onsite investigations of public agencies or private entities; whether they can summon members of the government, civil servants, and private individuals to testify; whether they can demand production of documents from those being investigated; whether the hearings are open to the public and the materials of the investigation are made public; and what the possible outcomes and legal significance of such investigations are. The surveys also address whether other parliamentary bodies may exercise the investigative powers enjoyed by committees of inquiry.

In most of the surveyed countries, parliaments have the authority to appoint committees of inquiry. Many of the surveyed countries have constitutions that authorize the parliament to conduct investigations, and some, such as Brazil, Mexico, and Turkey, have constitutional provisions authorizing committees of inquiry specifically. In most of the surveyed countries, however, authorization for committees of inquiry appear in the procedural rules of the legislative chambers.

In the surveyed countries, parliaments typically may establish committees of inquiry to investigate any subject matter they deem of sufficient importance. In Argentina, India, Turkey, and South Africa, committees of inquiry may not investigate matters pending in legal proceedings; in Australia, Israel, and Switzerland, they may do so subject to precautions to avoid prejudice to the proceedings.

In most of the surveyed countries, committees of inquiry have authority to hear testimony and request production of documents, although not all countries empower committees to compel such testimony and production.

Most of the surveyed countries (apart from Switzerland) provide for public meetings of committees of inquiry, unless secrecy is appropriate, and their reports are typically published. The committee of inquiry's report usually is submitted to the full chamber for its evaluation and further action, which is in the discretion of the chamber.

Argentina

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SUMMARY Argentina's National Constitution does not provide for congressional investigative committees. However, they have been created under the Regulations of the Lower House and the Senate as an implicit or inherent part of their legislative power. A committee is created on a temporary basis to fulfill an investigatory goal. Once the investigation is completed, the committee is terminated. Committees have the power to call officials and other individuals to testify as well as to request documentation pertinent to the investigation from both public and private entities and private individuals. Investigative committees may undertake other measures, such as searches and seizures, but they may only be carried out upon a court order.

I. Introduction

Argentina's congressional investigative committees have raised serious controversies, mainly because they are not explicitly provided for in the National Constitution (*Constitución Nacional* (CN)).¹ However, they have been recognized and treated by the courts as an implicit or inherent part of the legislative power under an expansive interpretation of article 75.32 of the CN.² This provision provides that Argentina's Congress has the authority to make all the laws and regulations that are necessary to carry out the powers assigned under the CN.³ Additionally, under the CN, each chamber of the Congress has the authority to enact its own regulation.⁴

There have been bills aimed at regulating congressional investigative committees but they have failed to become law.⁵

II. Subject Matter of the Inquiry

Special committees, either unicameral or bicameral, have been created as a response to the need to investigate events where security, national health, or illegalities related to public service, among other things, are at issue.⁶ In order to carry out their mission, the special committees have access to documents from official sources, public and private entities, and cooperating private

¹ Néstor Sagüés, *Los Límites de las Comisiones Investigadoras del Congreso*, La Nación, June 26, 2020, <https://perma.cc/TN3D-X45A>.

² Constitución de la Nación Argentina, Boletín Oficial [B.O.] Dec. 15, 1994, <https://perma.cc/LY2W-SHEH>.

³ Id. art. 75.32.

⁴ Id. art. 66.

⁵ Proyecto de Ley (S-0610/09) Régimen Legal de las Comisiones Investigadoras Parlamentarias, Honorable Senado de la Nación Argentina, <https://perma.cc/T9TD-GFK2>.

⁶ *Comisiones Especiales*, Honorable Cámara de Diputados de la Nación, <https://perma.cc/M3WS-JMAN>.

individuals.⁷ It is unclear whether limitations to access exist, for example, when a document is classified as “secret.”

In Argentine parliamentary history, this type of committee has been established on multiple occasions, for example:

- On War Matériel (1914-1916),
- On Monopolies (1918-1924),
- On Anti-Argentine Activities (1941-1943),
- On Illegal Detentions and Torture (1960-1961),
- Bicameral on the Contract between ALUAR and the National State (1975), and
- Bicameral on the Disappearance of and Search and Rescue Operations for the *ARA San Juan* Submarine (2017).

III. Creation, Legal Basis, and Time Limits

The creation, composition, and operation of legislative committees are under each chamber’s internal regulation.⁸ In the case of the Lower House (*Honorable Cámara de Diputados de la Nación* (HCDN)), its regulation provides that an investigative committee will have the powers and authority assigned by the HCDN at the time of its creation.⁹

The HCDN regulation provides that the chamber’s president has the authority to create special committees to address specific issues that are not governed by the regulation.¹⁰ This provision serves as a framework both for special committees with the function of studying particular topics and for those with investigative objectives.¹¹

Appointment to a special committee is based on the same proportion of the political sectors as is represented in the legislative body.¹² Vice-presidents of the body may be members of the special committees. All other lawmakers who are not members of a special committee may attend its sessions and be part of its deliberations but are not allowed to make any decisions or subscribe to any report issued by the special committee.¹³ The regulation doesn’t specify whether HCDN committees may make “field trips” or “on-the-spot” investigations.

⁷ Id.

⁸ Tomás Bieda, *Control Parlamentario en la República Argentina*, 20(1) Revista POSTdata: Revista de Reflexión y Análisis Político 185-219 (Apr.-Sept. 2015), <https://perma.cc/D9BC-GWME>.

⁹ Reglamento de la Honorable Cámara de Diputados de la Nación (RHCDN), art. 106, <https://perma.cc/9EDR-VJTC>.

¹⁰ Id. art. 104.

¹¹ Id.

¹² Id. art. 105.

¹³ Id.

A special committee will start its work immediately after its creation, appointing the heads of the committee and its secretaries.¹⁴ Investigative committees are allowed to work during a legislative recess.¹⁵ The President of the HCDN has the authority to request a committee to deliver its findings by a set deadline.¹⁶ Membership on a special committee lasts until it concludes its assignment.¹⁷

Similarly, the Regulation of the Senate (RHCSN) provides for the rules applicable to an investigative committee, which will be terminated once it completes its objective or reaches the deadline set at the time of its creation.¹⁸ The Senate has the power to form investigative committees in exercising its auditing and oversight powers.¹⁹ The resolution creating this type of committee requires the vote of a two-thirds majority of the Senate's members and includes the specific scope of its competence and the time frame of its duration, which may only be extended once, for a maximum of six months, upon the decision of two thirds of the Senate's members.²⁰

The Senate and the HCDN may agree on the creation of bicameral committees to address specific matters as needed, with the participation of a proportionate number of members of each body.²¹

A committee meets in its own facilities, unless the President decides it is necessary to meet someplace else.²² It is unclear whether that means Senate committees may make "field trips" or "on-the-spot" investigations. Meetings are public unless they are declared confidential and private by a decision of two thirds of the committee's members.²³ As in the HCDN, senators who are not members of the committee may attend its sessions but may not vote.²⁴ However, if a session is considered private and confidential, only committee members and individuals called to testify are allowed in the session.²⁵

¹⁴ Id. art. 106.

¹⁵ Id.

¹⁶ Id.

¹⁷ Id. art. 107.

¹⁸ Reglamento de la Honorable Cámara de Senadores de la Nación (RHCSN), 2016, art. 93, <https://perma.cc/S726-VS74>.

¹⁹ Id. art. 87.

²⁰ Id. art. 88.

²¹ Id. art. 86.

²² Id. art. 98 and RHCDN art. 106 last para.

²³ RHCSN art. 98.

²⁴ Id. art. 98, para 3.

²⁵ Id. art. 98 para 4.

A committee may also request the advice of experts on the subject matter of its investigation in order to facilitate its understanding, development, and evaluation of the matter.²⁶ No limitations on or formal requirements for expert testimony are specified.

An investigative committee is required to have a minimum quorum of half its members to function.²⁷ However, it may begin the session with only a one-third quorum a half hour after the session was scheduled to begin.²⁸

A recent investigative committee caused a great deal of controversy because it was created without the required quorum.²⁹ Constitutional law experts believe the committee's validity may be challenged in the courts and its actions may be subject to nullification.³⁰

IV. Investigative Powers

Congressional committees are not created to judge people, because this is a function that belongs to the judiciary, under the constitutional principle that guarantees due process.³¹ The CN specifically forbids the prosecution or adjudication of crimes by special committees and provides that no one can be punished without first being tried under the law by judges designated by law.³² A parliamentary investigative committee, in short, is justified for Congress to fulfill its specific constitutional functions, such as passing legislation and oversight of other branches of government, among others.³³ The prosecution of crimes is entrusted to the courts and not to Congress.³⁴

According to Daniel Sabsay, a constitutional law expert, the investigative committees are for fact finding, while determination of criminal liability is reserved to the courts.³⁵

A committee, through its president, is empowered to request reports and carry out all the measures deemed necessary to pursue its mission.³⁶ In the absence of specific rules about what type of powers are granted to congressional investigative committees, the courts have

²⁶ Id. art. 99 last para.

²⁷ Id. art. 100.

²⁸ Id.

²⁹ *Constitucionalistas Aseguraron que la Creación de la Comisión para Investigar a Vicentin fue Irregular*, Infobae, June 25, 2020, <https://perma.cc/DM2N-NHBT>.

³⁰ Id.

³¹ Id.

³² CN art. 18.

³³ Id.

³⁴ Infobae, *supra* note 29.

³⁵ Id.

³⁶ RHCSN art. 94.

recognized their authority to summon people to give testimony.³⁷ No penalty for giving false testimony to a committee is specified, and it is unclear whether an individual member of Congress can issue a summons or only a committee. Regarding the power to search homes and carry out seizures, a strong constitutional tradition requires that it only be exercised upon a court order.³⁸

V. Congressional Right of Inquiry by Other Means

The General Auditor of the Nation (AGN) is the body, created by Law 24156 in 1992, that supports Congress in overseeing the state of public sector accounts.³⁹ Although restricted to technical accounting, the AGN reports to the pertinent legislative committees on accounting issues found during its auditing functions.⁴⁰

The AGN oversees compliance with accounting, legal, and management standards by the Executive Branch. It further monitors the accurate and complete presentation of public accounting and reporting and analyzes the administration of tax interests. With its audit reports, which include comments, conclusions, and recommendations, it advises Congress on the status of the public national administration and public finances.

³⁷ Néstor Sagüés, *supra* note 1.

³⁸ *Id.*

³⁹ Ley 24156 de Administración Financiera y de los Sistemas de Control del Sector Público Nacional, B.O. Oct. 29, 1992, <https://perma.cc/6QAU-FMXV>.

⁴⁰ Miriam Mabel Ivanega, *Los Controles Administrativos del Presupuesto: Studio Comparativo entre la AGN, la SIGEN, Defensor del Pueblo y Comisiones Parlamentarias*, II *El Derecho Constitucional Presupuestario en el Derecho Comparado* 995-1032 (Buenos Aires 2010).

Australia

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SUMMARY The two houses of the Australian Parliament, the House of Representatives and the Senate, have the power to appoint committees of inquiry. While there are some differing rules between the two houses, in general, committees may be standing (usually appointed at the start of a parliament and continuing until the end of that parliament) or select (cease to exist once a final report is presented). There are also joint committees and statutory committees. Debate is ongoing over whether the subject matter of committee inquiries is limited to the areas of legislative power provided to the Parliament under the Australian Constitution. The sub judice convention, whereby restrictions are imposed on parliamentary activity with regard to matters awaiting adjudication in a court of law, may lead to certain evidence being taken in camera, but does not restrain the ability of a committee to inquire into a matter.

Both houses delegate the power to summon witnesses and require the production of documents to their committees. While there is no formal legal limitation on such power, there may be implicit limitations with respect to members of the other house or other parliaments, the head of state, and judges. Public interest immunity may be claimed by the executive branch, although in practice this may lead to negotiations and possible findings of contempt, depending on the circumstances. Committees hold public hearings and publish their proceedings, and have the authority to determine the publication of evidence. Upon the completion of reports, the government formally responds to committee recommendations within a certain time period.

I. General Framework

Section 49 of the Australian Constitution broadly establishes the powers of the two houses of the Australian federal parliament (the House of Representatives and the Senate):

The powers, privileges, and immunities of the Senate and of the House of Representatives, and of the members and the committees of each House, shall be such as are declared by the Parliament, and until declared shall be those of the Commons House of Parliament of the United Kingdom, and of its members and committees, at the establishment of the Commonwealth.¹

Section 50 of the Constitution provides that each house of Parliament “may make rules and orders with respect to . . . [t]he mode in which its powers, privileges, and immunities may be exercised

¹ Constitution of Australia s 49, <https://perma.cc/8LUS-6FCV>.

and upheld.”² The standing orders of both the House³ and the Senate⁴ contain rules regarding the establishment, operation, and powers of parliamentary committees. Other relevant sources with respect to the rules and procedures of committees include the Parliamentary Privileges Act 1987 (Cth),⁵ the Parliamentary Papers Act 1908 (Cth),⁶ parliamentary resolutions and sessional or procedural orders, relevant court decisions, and the established practices of the two houses. These rules and practices, and areas of uncertainty, are described in the authoritative practice and procedure texts produced by the clerks of each house: *House of Representatives Practice*⁷ and *Odgers’ Australian Senate Practice*.⁸

II. Committees of Inquiry in Parliament

A. Creation and Legal Basis

According to *House of Representatives Practice*, “[t]he power of the House to appoint committees is not in doubt but the source of this power, particularly in regard to investigatory committees, cannot be stated precisely.”⁹ It states that, “[a]s there is no doubt about the power of the House of Commons to appoint committees, section 49 of the Constitution appears to be a clear source of power, with extensive ambit, for the Houses of the Parliament to appoint committees of inquiry.”¹⁰ In addition, section 50 of the Constitution, as well as the common law, can be seen as extending the breadth of the power or sustaining “what otherwise might be uncertain about it.”¹¹

There are two main types of committees in the Parliament: standing committees and select committees. Such committees may be established by one of the houses or by legislation, in which case they are referred to as statutory committees. Joint committees, with membership from both houses, may also be standing, select, or statutory committees.¹² Certain standing committees are appointed at the beginning of each Parliament pursuant to the standing orders of each house.¹³

² Id. s 50.

³ House of Representatives, Parliament of Australia, *Standing Orders* (as at Sept. 19, 2019) (House SO), <https://perma.cc/J8ZN-RWLV>.

⁴ Senate, Parliament of Australia, *Standing Orders* (Senate SO), <https://perma.cc/79G3-2G3M>.

⁵ Parliamentary Privileges Act 1987 (Cth), <https://perma.cc/Q26Z-VZGR>.

⁶ Parliamentary Papers Act 1908 (Cth), <https://perma.cc/XHJ9-C7XL>.

⁷ *House of Representatives Practice* (D.R. Elder ed., 7th ed. June 2018), <https://perma.cc/BD6D-QBJ2>.

⁸ *Odgers’ Australian Senate Practice* (Rosemary Laing ed., 14th ed. 2016), <https://perma.cc/TH2Y-WDH8> (updates available online to July 31, 2020).

⁹ *Authority for the Appointment of Committees*, in *House of Representatives Practice* ch. 18 (7th ed.), <https://perma.cc/Z44D-MMUP>.

¹⁰ Id.

¹¹ Id.

¹² Senate, Parliament of Australia, *Senate Brief No. 4 – Senate Committees* (May 2020), <https://perma.cc/92Q3-N6H8>.

¹³ House SO 214 & 215; Senate SO 25.

Standing committees may also be established by a sessional order or resolution.¹⁴ Select committees are established by a resolution of the relevant house,¹⁵ or by a resolution agreed by both houses in the case of joint select committees.¹⁶

B. Subject Matter of the Inquiry

1. Limitations

The Senate standing orders prohibit its standing legislative and general purpose committees from inquiring into matters being examined by Senate select committees.¹⁷ While there is no equivalent rule in the House, “it has generally been considered desirable for committees to endeavour to avoid duplication with the work of other committees.”¹⁸

Both *House of Representatives Practice* and *Odgers’ Australian Senate Practice* discuss the uncertainty and debate over whether the power to conduct inquiries “may be confined to inquiries into subjects in respect of which the Commonwealth Parliament has the power to legislate” under the Constitution.¹⁹ There are no explicit rules or authoritative judgments on this issue.

2. Sub Judice Convention

Limitations on inquiries may also arise from the sub judice convention that applies to both houses and their committees, whereby the Parliament imposes certain restrictions on itself with regard to matters awaiting adjudication in a court of law.²⁰ However, where a committee has been directed to undertake a particular inquiry, the convention may not prevent it from actually undertaking that inquiry, since “[c]ommittees have the capacity to avoid prejudice to legal proceedings by hearing evidence in camera.”²¹ They may also refrain from taking particular evidence in order to avoid causing difficulties in legal proceedings, such as where evidence may be generated that cannot be used in legal proceedings because of parliamentary privilege.²²

¹⁴ *Appointment and Duration*, in *House of Representatives Practice* ch. 18 (7th ed.), <https://perma.cc/H487-CHJP>.

¹⁵ House SO 223; Senate SO 28.

¹⁶ House SO 224-226; Senate SO 42. See also *Appointment and Duration*, *supra* note 14.

¹⁷ Senate SO 25(13).

¹⁸ *Referral of Matters for Inquiry*, in *House of Representatives Practice* ch. 19 (7th ed.), <https://perma.cc/L32L-9ZDX>.

¹⁹ *Chapter 2 – Parliamentary Privilege: Immunities and Powers of the Senate*, in *Odgers’ Australian Senate Practice* (14th ed.), <https://perma.cc/U87U-P34E>. See also *Powers of Committees*, in *House of Representatives Practice* ch. 18 (7th ed.), <https://perma.cc/NMT7-W67D>.

²⁰ *Witnesses*, in *House of Representatives Practice* ch. 19 (7th ed.), <https://perma.cc/YE7D-PAAQ>.

²¹ *Chapter 16 – Committees*, in *Odgers’ Australian Senate Practice* (14th ed.), <https://perma.cc/XQ74-G9TZ>.

²² *Id.*

C. Time Limit

While standing committees exist for the life of a Parliament, select committees cease to exist once their final report is submitted.²³ The due date for a report is contained in the resolution appointing the select committee, but the relevant house may grant an extension to that date by amending its resolution.²⁴

There is no requirement for a reporting date to be fixed when a matter is referred to a standing committee for investigation. In practice, however, most motions do include such a date, which may be subsequently altered following a motion to modify the resolution.²⁵

III. Investigative Powers

A. Investigations into Public Administrations and Private Entities

Most committees “investigate specific matters of policy or government administration or performance.”²⁶ In the majority of cases, inquiries are referred to committees by a resolution of the relevant house, by legislation, or by a government minister. In addition, certain standing committees have continuing authority to inquire into annual reports of government departments, meaning that they can examine a wide range of matters.²⁷

B. Power to Obtain Evidence

In the Australian Parliament, “[t]he power to summon witnesses and the power to require the production of documents are one in the same; any limitation on one therefore apply equally to the other.”²⁸ However, the power, which is held by each house and delegated to committees, “has been seldom used” in practice as committees “usually invite witnesses to attend and give evidence, and witnesses usually attend voluntarily.”²⁹ In addition, at the start of an inquiry, “submissions are routinely invited from the relevant government agencies and non government organisations known to have an interest in the matter under examination. Invitations may also be issued to individuals with a special interest or expertise in the field.”³⁰

In the House of Representatives, the power to call witnesses and require that documents be produced is given to all House committees by the standing orders.³¹ However, the power may be

²³ *Senate Brief No. 4 – Senate Committees*, supra note 12.

²⁴ House SO 223; Senate SO 28.

²⁵ *Chapter 16 – Committees*, supra note 21.

²⁶ House of Representatives, Parliament of Australia, *Infosheet 4 – Committees*, <https://perma.cc/L4CL-BFA4>.

²⁷ *Referral of Matters for Inquiry*, supra note 18. See also *Chapter 16 – Committees*, supra note 21.

²⁸ *Chapter 2 – Parliamentary Privilege: Immunities and Powers of the Senate*, supra note 19.

²⁹ *Chapter 16 – Committees*, supra note 21.

³⁰ *Id.*

³¹ House SO 236. See also House SO 254.

limited by another standing order or by a resolution.³² In the Senate, the standing orders provide that “[t]he Senate may give a committee power to send for persons and documents, and a committee with that power may summon witnesses and require the production of documents.”³³ *Odgers’ Australian Senate Practice* states that “[l]egislative and general purpose standing committees and most select committees possess the full range of inquiry powers, enabling them, if necessary, to summon witnesses and order the production of documents.”³⁴

A person who fails to comply with a lawful order of a committee may be found in contempt and, in accordance with section 7 of the Parliamentary Privileges Act 1987 (Cth), may be subject to a penalty of up to six months’ imprisonment or a fine not exceeding AU\$5,000 (about US\$3,650) for a natural person or AU\$25,000 (about US\$18,230) for a corporation.³⁵

C. Limitations

There are “no explicit legal limitations” to the formal powers of the two houses and their committees to summon witnesses to appear or produce documents.³⁶ However, according to *Odgers’ Australian Senate Practice*, “there is probably an implicit limitation on the power of the Houses to summon witnesses in relation to members of the other House or of a house of a state or territory legislature.”³⁷ There may also be a limitation with respect to the head of state (i.e., the monarch or her representative).³⁸ Furthermore, “[i]t is generally assumed that the Senate and its committees would not summon members of the judiciary, as a matter of mutual respect between the legislature and the judicial branch. There is, however, no basis for any legal immunity.”³⁹

The procedural texts of both houses contain extensive discussions regarding “executive privilege,” also referred to as “Crown privilege,” and the doctrine of “public interest immunity.”⁴⁰ It appears that, while in principle Commonwealth public servants are legally bound by orders of a committee when summoned to give evidence related to their official duties, “in practice their position is somewhat different.”⁴¹ In certain circumstances, the relevant Minister may claim public interest immunity in directing an official to refuse to answer a committee’s questions. In this respect, the Australian government has published *Government Guidelines for*

³² *Powers of Committees*, supra note 19.

³³ Senate SO 34.

³⁴ *Chapter 16 – Committees*, supra note 21.

³⁵ Parliamentary Privileges Act 1987 (Cth) ss 4 & 7.

³⁶ *Chapter 17 – Witnesses*, in *Odgers’ Australian Senate Practice* (14th ed.), <https://perma.cc/PY57-U8J9>.

³⁷ *Chapter 2 – Parliamentary Privilege: Immunities and Powers of the Senate*, supra note 19. See also House SO 249(b).

³⁸ Harry Evans, *The Senate’s Power to Obtain Evidence* (Papers on Parliament No. 50, Mar. 2010), <https://perma.cc/Z4L3-57Z6>.

³⁹ *Id.*

⁴⁰ *Witnesses*, supra note 20; *Public Interest Immunity*, in *House of Representatives Practice* ch. 17 (7h ed.), <https://perma.cc/8L8C-24UW>; *Chapter 19 – Relations with the Executive Government*, in *Odgers’ Australian Senate Practice* (14th ed.), <https://perma.cc/4F3Q-WGHU>.

⁴¹ *Witnesses*, supra note 20.

Official Witnesses before Parliamentary Committees and Related Matters,⁴² which incorporate principles derived from various sources. Where such a claim is made, *House of Representatives Practice* explains that “a committee may negotiate further with a Minister or the Prime Minister. Ultimately it is, in principle, open to the committee to challenge the Minister’s claim in the House by raising the Minister’s or the Government’s behaviour as a possible contempt of the House.”⁴³

In the House of Representatives, “[b]ecause of the majority of government Members in the House, disputes over such matters between the Government and the House are less likely to arise and when they do, it is likely that a compromise may be reached, for example, by agreement to produce documents on a confidential basis.”⁴⁴ However, in the Senate, where the government often does not have a majority, while steps are usually not taken to enforce production of documents when immunity is claimed, “Ministers (including a Minister in the House) have been censured for contempt of the Senate for not responding to Senate orders to produce documents.”⁴⁵

Odgers’ Australian Senate Practice explains that claiming certain information is subject to statutory secrecy provisions is one of the grounds for public interest immunity that “have either not attracted acceptance by the Senate or have been explicitly rejected.”⁴⁶ It states that “[u]nless a statutory secrecy provision expressly limits the powers of the Houses, it is subservient to parliamentary inquiry powers. Because of the protection of freedom of speech in Parliament, a person cannot be prosecuted for breaching a secrecy provision in providing evidence to a House or committee.”⁴⁷

IV. Publicity

In both the House and the Senate, it is for the relevant committee to decide whether to receive a submission as evidence and whether to publish it.⁴⁸ Publication is usually authorized unless there are strong reasons not to do so. No person, including submitters themselves, may publish or disclose submissions until the committee has authorized publication.⁴⁹

Committees normally select witnesses from those who have made submissions, although additional witnesses may also be sought. *Odgers’ Australian Senate Practice* states that “[t]he taking of evidence at public hearings is a key element of most Senate committee inquiries and is an opportunity to test, in public, views expressed in the written submissions already received by the

⁴² Department of the Prime Minister and Cabinet, *Government Guidelines for Official Witnesses before Parliamentary Committees and Related Matters* (Feb. 2015), <https://perma.cc/8JQ3-69WJ>.

⁴³ *Witnesses*, *supra* note 20.

⁴⁴ *Id.*

⁴⁵ *Id.*

⁴⁶ *Chapter 19 – Relations with the Executive Government*, *supra* note 40.

⁴⁷ *Id.* See also *Chapter 2 – Parliamentary Privilege: Immunities and Powers of the Senate*, *supra* note 19.

⁴⁸ *Parliamentary Papers Act 1908* (Cth) s 2.

⁴⁹ House SO 242; Senate SO 37(1).

committee.”⁵⁰ A Senate standing order provides that the examination of witnesses must be recorded in a transcript of evidence,⁵¹ and “[a] provision requiring the publication of a daily Hansard of a committee’s public proceedings is a standard inclusion in the resolutions establishing select committees.”⁵² The House standing orders also require that the proceedings of committees be recorded in the minutes.⁵³ A Senate committee may also authorize the broadcasting of its public hearings, in which case a standing order sets out the rules governing such broadcasting, and the committee can impose additional conditions.⁵⁴

In terms of in camera or private documents, “[i]t is an offence under the Parliamentary Privileges Act, as well as a contempt of the House, for any person to disclose or publish a document or evidence taken in camera without the authority of the House or a committee.”⁵⁵ A Senate standing order sets out procedures related to the disclosure of in camera evidence and other unpublished committee information.⁵⁶ In the House, pursuant to a resolution on the disclosure of evidence, “the Speaker has the authority to permit access to unpublished in camera evidence after 30 years, subject to certain conditions.”⁵⁷

In terms of classified or otherwise restricted information,

Schedule 1 of the Intelligence Services Act 2001 places restrictions on the disclosure to Parliament of certain matters. In a report to a House the Joint Committee on Intelligence and Security must not disclose the identity of a person who is or has been a staff member or an agent of certain intelligence agencies; or any information from which the identity of such a person could reasonably be inferred. In addition the committee must not, in a report to either House, disclose operationally sensitive information or information that would or might prejudice Australia’s national security or the conduct of Australia’s foreign relations; or the performance by an agency of its functions. The committee is required, before presenting a report to either House, to obtain advice of the responsible Minister or Ministers concerned as to whether the disclosure of any part of the report would or might disclose such a matter.⁵⁸

⁵⁰ Chapter 16 – Committees, supra note 21.

⁵¹ Senate SO 35(2).

⁵² Chapter 16 – Committees, supra note 21.

⁵³ House SO 239.

⁵⁴ Chapter 16 – Committees, supra note 21.

⁵⁵ *Publication of Evidence*, in *House of Representatives Practice* ch. 19 (7th ed.), <https://perma.cc/3GNV-2Y5G>. See also Parliamentary Privileges Act 1987 (Cth) s 13.

⁵⁶ Senate SO 37.

⁵⁷ See *Publication of Evidence*, supra note 55.

⁵⁸ Id.

V. Outcomes

There are standing orders in both houses relating to the completion and presentation of committee reports, including dissenting reports.⁵⁹ The recommendations contained in committee reports are not binding on the government. However, in the House of Representatives, “[t]he Government is obliged by resolution of the House to present its response to recommendations contained in a report by a House or Joint Committee within six months of the report’s presentation.”⁶⁰ In the Senate, “[s]uccessive governments have undertaken to respond to the recommendations of committees, and the current undertaking is for a response within three months.”⁶¹

VI. Investigative Powers Attributed to Others

While members of the two houses of Parliament have certain privileges and immunities, and some information provided to them may be considered parliamentary proceedings and also attract certain protections,⁶² it does not appear that they are able to exercise the powers to inquire or obtain evidence on an individual basis, at least in the absence of specific delegation from the relevant house. No information was found regarding such powers ever having been delegated to individual members, and there are no relevant standing orders or other rules or practices reported in the procedural texts of the two houses.

In addition, according to *Odgers’ Australian Senate Practice*, “[i]t is not determined whether the Houses can delegate their power to conduct inquiries to a person other than their own members, although there are some old precedents in Britain for such a delegation.”⁶³

⁵⁹ House SO 243–247; Senate SO 38.

⁶⁰ *Reports, in House of Representatives Practice* ch. 19 (7th ed.), <https://perma.cc/D735-VHVR>. See also *Infosheet 4 – Committees*, *supra* note 26.

⁶¹ *Chapter 16 – Committees*, *supra* note 21.

⁶² *Chapter 2 – Parliamentary Privilege: Immunities and Powers of the Senate*, *supra* note 19.

⁶³ *Id.*

Brazil

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SUMMARY The Brazilian Constitution provides for the Chamber of Deputies and the Federal Senate to create parliamentary inquiry committees, jointly or separately, upon the request of one third of chamber members. A Federal law provides additional authority for parliamentary inquiry committees. The internal rules of both chambers govern their creation, subject matter, time limits, investigative powers, publicity, and outcomes.

I. Constitutional Principle

According to the Brazilian Constitution of 1988, the National Congress and both its Chambers must have permanent and temporary committees, created in the form and with the powers provided for in the respective bylaws or in the act of their creation.¹

The Constitution provides that committees, based upon subjects over which they have jurisdiction, shall have the power to:

- I – discuss and vote on [certain] bills . . . ;
- II – hold public hearings with entities of civil society;
- III – summon Ministers of the Federal Government to provide information on matters inherent to their duties;
- IV – receive petitions, claims, representations or complaints from any person against acts or omissions of government authorities or public entities;
- V – request the deposition of any authority or citizen;
- VI – examine construction programs and national, regional and sectorial development plans and to issue opinions upon them.²

The Constitution also states that parliamentary inquiry committees (*comissões parlamentares de inquérito*, CPIs), which must have the same investigative powers as judicial authorities in addition to other powers set forth in the bylaws of their respective Chambers, must be created by the Chamber of Deputies and the Federal Senate, either jointly or separately, upon the request of one third of the Chamber's members, to investigate certain facts for a defined period of time. If appropriate, their conclusions must be forwarded to the Public Prosecutor's Office

¹ Constituição Federal [C.F.] [Constitution], art. 58, <https://perma.cc/P8AC-N8GQ>.

² Id. art. 58, § 2.

(*Ministério Público*) to determine whether to pursue the civil or criminal liability of the offenders.³

II. Parliamentary Inquiry Committees

A. Law No. 1,579 of March 18, 1952

Law No. 1,579 of March 18, 1952, as amended on December 5, 2016, by Law No. 13,367 to conform it to the provisions of the Constitution, specifies the authority and procedures of CPIs.⁴ In the exercise of their duties, CPIs may determine the steps they deem necessary and require the calling of Ministers of State, take the testimony of any federal, state or municipal authorities, hear accused persons, question witnesses under oath, request information and documents from public administration bodies, and go to places where their presence is required.⁵

Accused persons and witnesses will be served process in accordance with the provisions of criminal law.⁶ In the event a witness does not appear without a justified reason, the criminal judge of the locality in which the witness resides or is found will be requested to summon the witness under the terms of articles 218 (coerced presentation) and 219 (disobedience) of the Code of Criminal Procedure.⁷ The deponent may be accompanied by a lawyer, even in a secret meeting.⁸ Making a false statement before a CPI is a crime punishable by two to four years of imprisonment and a fine under article 342 of Brazil's penal code.⁹

When the existence of strong evidence of the illicit origin of property is verified, it is the responsibility of the president of the CPI to request from the competent criminal court, at any stage of the investigation, a necessary precautionary measure.¹⁰

The CPI will present a report on its work to the respective Chamber, concluding with the draft of a resolution (*projeto de resolução*).¹¹ If diverse facts are under investigation, the CPI will report separately about each one, even before the end of the other investigations.¹² The commission of the CPI ends with the legislative session in which it was granted, unless the respective Chamber decides to extend it within the current Legislature.¹³

³ Id. art. 58, § 3.

⁴ Lei No. 1.579, de 18 de Março de 1952, as amended by Lei No. 13.367, de 5 de Dezembro de 2016, <https://perma.cc/NQM7-FEWR>.

⁵ Id. art. 2.

⁶ Id. art. 3.

⁷ Id. art. 3, § 1.

⁸ Id. art. 3, § 2.

⁹ Id. art. 4(II); Código Penal art. 342, <https://perma.cc/8K9H-ZNZ8>.

¹⁰ Lei No. 1.579, de 18 de Março de 1952, as amended by Lei No. 13.367, de 5 de Dezembro de 2016, art. 3-A.

¹¹ Id. art. 5.

¹² Id. art. 5, § 1.

¹³ Id. art. 5, § 2.

The CPI must forward a detailed report, with its conclusions for the appropriate measures to be taken, to the Public Prosecutor's Office (*Ministério Público*) or to the Attorney General's Office (*Advocacia-Geral da União*), among other bodies, with a copy of the documentation, so that they can pursue civil or criminal liability for violations found and adopt other measures based on their institutional functions.¹⁴

B. Chamber of Deputies

1. Creation and Subject Matter

The Chamber of Deputies, at the request of one third of its members, will establish a CPI for the investigation of a determined fact and for a certain period of time, which will have the powers of investigation of the judicial authorities, in addition to others provided for by law and in the Chamber's Internal Rules.¹⁵ An event of relevant interest to public life and the constitutional, legal, economic, and social order of the country, which is duly characterized in the request for the creation of the committee, is considered to be a determined fact.¹⁶

2. Time Limit

The CPI, which may also act during the parliamentary recess, must have a period of 120 days, extendable by up to one half that amount of time, upon deliberation by the plenary, to conclude its work.¹⁷ A CPI will not be created while at least five others are functioning in the Chamber, except through a draft resolution with the same presentation quorum provided for in article 35 of the Internal Rules (one third of the members).¹⁸ The committee will have its numerical composition indicated in the application or creation project.¹⁹

3. Investigative Powers

The CPI may, subject to specific legislation, determine due diligence, hear accused persons, question witnesses under oath, request information and documents from public administration bodies and entities, request the hearing of Deputies and Ministers of State, take depositions from federal, state, and municipal authorities, and request the services of any authorities, including the police,²⁰ and travel anywhere in the national territory to carry out investigations and public hearings.²¹

¹⁴ Id. art. 6-A.

¹⁵ Resolução da Câmara dos Deputados No. 17, de 1989, art. 35, <https://perma.cc/TET5-9ME5>.

¹⁶ Id. art. 35, § 1.

¹⁷ Id. art. 35, § 3.

¹⁸ Id. art. 35, § 4.

¹⁹ Id. art. 35, § 5.

²⁰ Id. art. 36(II).

²¹ Id. art. 36(IV).

As previously mentioned, the Chamber of Deputies will establish a CPI for the investigation of a determined fact and for a certain period of time.²² In addition, article 55 of the Internal Rules of the Chamber of Deputies states that no committee may express its opinion on what is not within its specific assignment (*atribuição*).²³ Therefore, it seems that the investigative authority granted to CPIs over particular matters cannot be used by other parliamentary committees or individual members of parliament.

4. *Publicity and Outcome*

At the end of the work, the CPI will present a detailed report with its conclusions, which will be published in the official gazette of the Chamber of Deputies (*Diário da Câmara dos Deputados*) and forwarded to:

I - the Bureau [*Mesa*], for the appropriate measures, offering, as the case may be, a bill, legislative decree or resolution, or indication, which will be included in the agenda within five sessions;

II - the Public Prosecutor's Office or to the Attorney General's Office, with a copy of the documentation, so that they can pursue civil or criminal liability actions for violations found and adopt other measures resulting from their institutional functions;

III - the Executive Branch, to adopt disciplinary and administrative measures resulting from article 37(§§ 2-6) of the Constitution, and other applicable constitutional and legal provisions, indicating a timely term for compliance;

IV - the Permanent Committee that is most pertinent to the matter, which will be responsible for supervising the compliance with the provisions of the previous item;

V - the Permanent Joint Committee referred to in article 166(§ 1) of the Constitution, and to the Federal Audit Court, for the measures provided for in article 71 of the Constitution.²⁴

In the cases of items II, III, and V above, the referral will be made by the President of the Chamber of Deputies, within five sessions.²⁵

The gazette of the Chamber will publish in all its editions the list of the Permanent, Special, and Inquiry Committees, with the designation of the places, days, and times when the meetings will be held.²⁶

5. *Meetings*

The meetings of the committees will be public, unless otherwise decided.²⁷ Meetings in which there is a matter that should be debated with the presence of only officials on duty at a committee and

²² Id. art. 14.

²³ Id. art. 55.

²⁴ Id. art. 37.

²⁵ Id. art. 37(sole para.).

²⁶ Id. art. 46, § 3.

²⁷ Id. art. 48.

technicians or authorities that it invites will be private, at the discretion of the committee.²⁸

C. Federal Senate

1. Creation, Subject Matter, and Time Limit

The creation of a CPI will be made at the request of one third of the members of the Federal Senate.²⁹ The request will state the fact to be investigated, the number of members, the duration of the committee and the limit of expenses to be incurred.³⁰ After receiving the request, the President of the Senate will order that it be numbered and published.³¹ CPIs will not be allowed to investigate matters pertinent to the Chamber of Deputies, the powers of the Judiciary, and the states.³²

2. Investigative Powers

In carrying out their assignments, CPIs are granted the same powers of investigation as judicial authorities. They are allowed to carry out all steps they deem necessary, including requiring the appearance of Ministers of State, taking the testimony of any authority, interviewing witnesses under oath, hearing indicted persons, requesting information or documents of any nature from a public agency, as well as requesting the Federal Audit Court to carry out inspections and audits that it deems necessary.³³ Indicted persons and witnesses will be summoned in accordance with criminal procedure legislation, and where applicable will be questioned as provided in such legislation.³⁴

While standing committees have certain investigative powers, the Internal Rules do not extend the particular investigative authority granted to a CPI to other parliamentary committees or individual members of parliament.

3. Publicity and Outcome

At the end of its work, the CPI will send to the Bureau its report and conclusions for the knowledge of the plenary.³⁵ The CPI will also forward its conclusions, if applicable, to the Public Prosecutor's Office, in order to pursue the civil or criminal liability of the violators.³⁶ The term of the CPI may be automatically extended at the request of one third of the members of the Senate, communicated in writing to the Bureau, read in plenary and published in the official gazette of

²⁸ Id. art. 48, § 1.

²⁹ Resolução do Senado Federal No. 93, de 1970, art. 145, <https://perma.cc/3TQ3-8Z49>.

³⁰ Id. art. 145, § 1.

³¹ Id. art. 145, § 2.

³² Id. art. 146.

³³ Id. art. 148.

³⁴ Id. art. 148, § 2.

³⁵ Id. art. 150.

³⁶ Id. art. 151.

the Federal Senate, subject to the provisions of article 76, section 4 (which provides that committees of inquiry may not exceed the period of the legislature that created it).³⁷

4. Meetings

The meetings are held in public, except where the Internal Rules provide otherwise or when the committee decides.³⁸

III. Permanent Committees

As noted above in section I, the Constitution specifies certain powers all legislative committees enjoy, including investigatory powers like summoning government ministers, and requesting depositions of authorities or citizens.³⁹ The Internal Rules of the two chambers detail the investigative powers of the respective chambers' permanent committees.

A. Chamber of Deputies

The definition of permanent committees in the Internal Rules of the Chamber of Deputies states that their "purpose is to assess the subjects or proposals submitted to their examination and deliberate on them, as well as exercise monitoring of government plans and programs and the budgetary inspection of the Union, within the scope of the respective thematic fields and areas of operation."⁴⁰

Permanent committees, subject to their areas of competence, have the authority among other things to:

...

III - hold public hearings with civil society entities;

IV - summon a Minister of State to personally provide information on a previously determined matter, or to grant him a hearing to expose a matter of relevance to his ministry;

V - forward, through the Bureau, written requests for information to the Minister of State;

VI - receive petitions, complaints or representations from any person against acts or omissions by public authorities or entities, in the form of article 253 of the Internal Rules;

VII - request the testimony of any authority or citizen;

...

X - determine the performance, with the assistance of the Federal Audit Court (Tribunal

³⁷ Id. art. 152.

³⁸ Id. art. 110.

³⁹ Constitution art. 58, § 2.

⁴⁰ Resolução da Câmara dos Deputados No. 17, de 1989, art. 22(I).

de Contas da União), of investigations (diligências), inspections (perícias e inspeções) and audits of an accounting, financial, budgetary, operational and patrimonial nature, in the administrative units of the legislative, executive and judiciary branches, of direct and indirect administration, including foundations and societies established and maintained by the federal government;

XI - to exercise supervision and control over the acts of the executive branch, including those of the indirect administration;

...

XIV - request a hearing or collaboration with bodies or entities of the direct, indirect or foundational public administration, and of civil society, to elucidate matters subject to their responsibility, not implying the diligence of extending the deadlines.⁴¹

B. Federal Senate

The Internal Rules of the Senate provide that committees may, among other things:

...

II - hold public hearings with civil society entities;

III - call Ministers of State or any holders of bodies directly subordinate to the Presidency of the Republic to provide information on matters inherent to their duties and to listen to Ministers when exercising the faculty provided for in art. 50, § 1, of the Constitution;

IV - receive petitions, complaints, representations or complaints from any person against acts or omissions by public authorities or entities;

V - request the testimony of any authority or citizen;

...

IX - monitor, inspect and control government policies relevant to the areas within its competence;

X - exercise the supervision and control of the acts of the Executive Power, including those of the indirect administration, and with respect to issues related to the private competence of the Senate;

...

XIII - perform investigations (diligências).⁴²

The relevant provisions of the Code of Civil Procedure apply as appropriate to the testimony of witnesses and authorities.⁴³

⁴¹ Id. art. 24.

⁴² Resolução do Senado Federal No. 93, de 1970, art.90.

⁴³ Id. art. 90 (sole para.).

Egypt

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SUMMARY There are two types of Committees of Inquiry: the Fact-Finding Committee and the Committee of Investigation and Hearing. Both committees are established on a temporary basis.

The Fact-Finding Committee has the authority to inspect the activities of an administrative body, public organization, or public project for the purpose of fact-finding related to a specific subject. The Committee of Investigation and Hearing may investigate facts related to political events.

Both committees employ similar procedures during their investigation. The Fact-Finding Committee has the power to collect evidence and hear specific individuals who are deemed important to the investigation. Similarly, the Committee of Investigation and Hearing has the right to summon any private and public entities as well as experts to be heard by the members of the committee during its investigation in a certain matter.

The Egyptian Constitution of 2014 grants every member of the Council of Representatives the right to request and obtain any information from the executive branch to carry out his/her work in Council appropriately.

Members of the Council of Representatives must discuss the report submitted by the Fact-Finding Committee in the first session following submission of the report to the Council. The meetings of the Committee of Investigation and Hearing may take place inside or outside the Council of Representatives after obtaining the permission of the Chairman of the Council.

The Council decides what it deems appropriate in terms of future measures that must be adopted as an outcome of an investigation by the Fact-Finding Committee. The Chairman of the Council, in important cases, may submit to the President of the Republic and the Prime Minister a report demonstrating the outcome of an investigation by the Committee of Investigation and Hearing and the procedures adopted during its investigation.

I. Creation and Legal Basis

There are two types of Committees of Inquiry: the Fact-Finding Committee and the Committee of Investigation and Hearing.

A. Fact-Finding Committee

A committee of inquiry, called a “Fact-Finding Committee,” is created by a decision of the Chairman of the Council of Representatives. This committee is established through two venues:

a request from one of the Council's main committees or a petition signed by 20 members of the Parliament submitted to the Chairman of the Council requesting the establishment of an inquiry committee.¹

The Fact-Finding Committee can include between seven and 25 members of the Parliament. The chairman of the committee must be named by the Council Chairman.²

B. Committee of Investigation and Hearing

The Council has the authority to establish another type of committee of inquiry, which is called the "Committee of Investigation and Hearing." The Chairman of the Council issues a decision to form this committee from no fewer than three members of the Council and no more than 10 members.³

II. Subject Matter of the Inquiry

A. Matters of Inquiry of Fact-Finding Committee

The Council of Representatives may form a special committee of inquiry or assign one of its existing committees to investigate facts in a matter of public concern. The Fact-Finding Committee also has the authority to inspect the activities of an administrative body, public organization, or public project for the purpose of fact-finding in a specific subject. After concluding its investigation, the committee informs the Council of Representatives of the true financial, administrative or economic status of the public entity that was the subject of the investigation by the committee.⁴

B. Matters of Inquiry of Committee of Investigation and Hearing

The Council of Representatives may create a special committee or assign an existing committee to act as a Committee of Investigation and Hearing. This committee may investigate facts related to the political events in the country. It also has the authority to hear from experts about specific international and national problems. Finally, it must give an accurate report addressing a specific political or national matter.⁵

¹ Law No. 1 of 2016 (Law on the Internal Regulations of the Council of Representatives), art. 241, para. 1, al-Jaridah al-Rasmiyah, vol. 14 (bis) (b), 13 Apr. 2016, <https://perma.cc/VTN5-X66C> (in Arabic).

² Id. art. 241, para. 2.

³ Id. art. 245.

⁴ Constitution of the Arab Republic of Egypt, 18 Jan. 2014 [Const. of 2014], art. 135, <https://perma.cc/3V42-9CH8> (in Arabic).

⁵ Law No. 1 of 2016, art. 247.

III. Time Limit

The Fact-Finding Committee is a temporary committee. The order to form the committee identifies its chairman, scope, and the duration of its work.⁶ Similarly, the Committee of Investigation and Hearing is established on a temporary basis. The decision of the Chairman of the Council to create this committee identifies the duration of its work.⁷

IV. Investigative Powers

A. Investigative Powers of the Fact-Finding Committee

The Fact-Finding Committee has the power to collect evidence and summon specific individuals who are deemed important to the investigation. All investigated parties must respond to the requests of the committee of inquiry, including the submission of documents and materials deemed vital to the investigation.⁸ It appears that the Constitution of 2014 and Law No. 1 of 2016 on the internal regulation of the Council of Representatives do not provide possible legal consequences if the person is summoned and does not comply with that obligation.

B. Investigative Powers of the Committee of Investigation and Hearing

The committee has the power to notify, in writing through the Chairman of the Council, the bodies, legal persons, and others who are scheduled to be heard by the members of the committee. The committee will provide the individuals who will testify before its members with the date of a hearing. The heads of the government and private bodies and legal persons who are notified by the committee may choose their representatives in advance to testify before the committee.⁹

C. Investigative Powers of Individual Members of the Council

The Egyptian Constitution of 2014 grants every member of the Council of Representatives the right to obtain any information from the executive branch of the government about a specific public entity or matter in order to assist the member to carry out the member's work appropriately at the Council of Representatives.¹⁰

Likewise, every member of the Council of Representatives may submit questions to the Prime Minister, one of the Prime Minister's deputies, a minister, or their deputies on any matter that falls under their mandate. It is obligatory for members of the executive branch to respond to the questions submitted by the member of the council during the same parliamentary term.¹¹

⁶ Id. art. 241, para. 3.

⁷ Id. art. 245, para. 3.

⁸ Id. art. 242.

⁹ Id. art. 251.

¹⁰ Const. of 2014, art. 135, para. 3.

¹¹ Const. of 2014, art. 129, para. 1.

Finally, individual members of the Council have the right to refer the subject of their inquiries about a public entity or project to a Fact-Finding Committee to conduct further in-depth investigation.¹²

D. Attendance of the Ministers and Prime Minister at Hearings of the Council's Committees

The Prime Minister, his deputies, ministers and their deputies may attend the sessions of either the Council of Representatives or of any of their committees. Their attendance is obligatory if requested by the Council. They may be assisted by high-ranking officials of their choice.¹³

V. Publicity

A. Fact-Finding Committee Meetings and Reports

The Council of Representatives must discuss the report submitted by the Fact-Finding Committee in the first hearing following submission of the report to the Council.¹⁴ The report of the Committee, which is subject to parliamentary discussion, must include the following: the procedures adopted by the committee to investigate a specific matter and the findings about the actual financial, administrative, and economic status of the entity that was investigated by the Committee.

The report also must demonstrate whether the entity under the investigation adheres to the rule of law, the general budget, and the public policy of the state.¹⁵ Law No. 1 of 2016 does not specify whether the report submitted by the committee as well as the parliamentary discussion about the report will be confidential or public.

B. Committee of Investigation and Hearing Meetings and Reports

The meetings of the Committee of Investigation and Hearing may take place inside or outside the Council of Representatives after obtaining the permission of the Chairman of the Council.¹⁶ The Council publishes the dates of the meetings and hearings of the Committee of Investigation and Hearing. It also notifies media outlets to attend those meetings. The meetings of the committee will be held in public unless the majority of its members decides otherwise.¹⁷

The report of the committee must include the following: (1) experts' opinions related to the matter or problem investigated by the committee, (2) recommendations and suggestions to solve this problem, (3) facts that came up during the investigation from documents submitted to the

¹² Law No. 1 of 2016, art. 224.

¹³ Const. of 2014, art. 136, para. 1.

¹⁴ Law No. 1 of 2016, art. 243, para. 2.

¹⁵ Id. art. 243, para. 1.

¹⁶ Id. art. 248.

¹⁷ Id. art. 249.

committee and meetings conducted by members of the committee with experts, and (4) the statements of individuals and experts who testified before the committee.¹⁸

VI. Outcome

A. Fact-Finding Committee

After the Committee of Fact-Finding submits its report to the Council of Representatives and the Council discusses it, the Council decides what it deems appropriate in terms of adopting future measures concerning the entity under investigation.¹⁹

B. Committee of Investigation and Hearing

The Chairman of the Council, in important cases, may submit to the President of the Republic and the Prime Minister a report demonstrating the procedures adopted by the Committee of Investigation and Hearing during its investigation as well as decisions made by the Council regarding the matter under investigation.²⁰

¹⁸ Id. art. 251, para. 2.

¹⁹ Id. art. 240.

²⁰ Id. art. 255, para. 2.

India

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SUMMARY In India, parliamentary committees in both houses of Parliament are mainly of two types: ad hoc committees and standing committees. Inquiry committees are a form of ad hoc committees and are established to inquire into a particular issue and report back to the requesting house of Parliament. The work of these Committees is by and large regulated by the Rules of Procedure and Conduct of Business of the particular house, directions of the speaker/chairman of the house, and other parliamentary practices and conventions. Committees may be constituted or established by provisions of the Rules of Procedure of a particular house, upon a motion or resolution adopted by a house, by the authority of the Presiding officers (speaker/chairman), or by an Act of Parliament. Committees appear to have limited powers to call for documents and witnesses. Under the procedural rules of the lower house (the Lok Sabha), committees have the power to take evidence; request documents, papers, and records; and summon persons. Report findings are typically published and submitted in the relevant house; such findings appear to be recommendations and are not binding, but can be influential and help shape public debate and discussion.

I. Introduction

India is a quasi-federal democratic republic with a parliamentary system of government largely based on the UK model. Parliament is the “supreme legislative body of India” comprised of the President and an upper house, the Rajya Sabha (the Council of States), and the lower house, the Lok Sabha (the House of the People).¹ India’s bicameral Parliament forms the legislative branch of government. PRS Legislative Research has broadly outlined the main functions of Parliament; one of them is “oversight responsibility” to “ensure that the executive (i.e. government) performs its duties satisfactorily.”²

II. Committee System

In India, parliamentary committees in both Houses³ are mainly of two types: ad hoc committees and standing committees.⁴ Standing committees “are permanent and regular committees which are constituted from time to time in pursuance of the provisions of an Act of Parliament or Rules

¹ *Indian Parliament*, India.gov.in (last updated Aug. 21, 2020), <https://perma.cc/5PPC-TW5Z>.

² *About Parliament*, PRS Legislative Research, <https://perma.cc/87DB-DN7E>.

³ For detailed information on parliamentary committees in the Rajya Sabha see Rajya Sabha Secretariat, *Practice & Procedure Series: Committees of Rajya Sabha* (Feb. 2005), <https://perma.cc/YQD7-CE26>; Rajya Sabha Secretariat, *Handbook for Members of Rajya Sabha* 95 (Jan. 2010), <https://perma.cc/TWM5-2CGS>.

⁴ *Committees: Introduction*, Lok Sabha, <https://perma.cc/NB8H-SJHL>; *Committees of Rajya Sabha General Information*, Rajya Sabha, <https://perma.cc/R375-QUVT>.

of Procedure and Conduct of Business in Lok Sabha.”⁵ The work of these committees is of a “continuous nature.”⁶

Ad hoc committees, on the other hand, “are appointed for a specific purpose” or as “the need arises” and “cease to exist when they finish the task assigned to them and submit a report.”⁷ They are called ad hoc committees because they “become *functus officio* [having no further official authority or legal effect] after presentation of the report or conclusion of the assigned function or by efflux of time.”⁸ These committees include advisory committees and inquiry committees.⁹ The principal advisory ad hoc committees are the Select and Joint Committees on Bills, which are appointed to “consider and report on particular Bills.”¹⁰ Inquiry committees are established to inquire into a particular issue and report on it to the requesting house of Parliament. The Railway Convention Committee, the Committees on the Draft Five-Year Plans, and the Hindi Equivalents Committee are examples of Lok Sabha committees “appointed for specific purposes.”¹¹ Report findings appear to be recommendations and are not binding, but can be influential and help shape public debate and discussion. Committees appear to have “closed door meetings, which allows them to freely question and discuss issues and arrive at a consensus.”¹²

Ad hoc committees can also be in the form of joint parliamentary committees (JPCs) “on which members of both the Houses are represented.”¹³ JPCs can be

constituted to investigate serious issues which have greatly agitated the public mind and which involves [sic] frauds or corruption on a large scale. Such Committees are set up on the basis of a consensus arrived at between the Government and the Opposition. JPC is a well known and potent investigative mechanism of Parliament. These Committees becomes [sic] *functus officio* after submission of their report to the Parliament.¹⁴

⁵ *Parliamentary Committees*, Lok Sabha Secretariat, <https://perma.cc/AC3P-H76J>.

⁶ Id.

⁷ *Committees: Introduction*, Lok Sabha, <https://perma.cc/NB8H-SJHL>.

⁸ Ch. 25: *Committees*, in Rajya Sabha Secretariat, *Rajya Sabha at Work* 947 (3rd ed. 2017), <https://perma.cc/MQS4-ZPB7>.

⁹ Apoorva Mandhani, *Parliamentary Committees – The ‘Mini Parliaments’ that Vet Legislation and Policy Changes*, The Print (Nov. 18, 2019), <https://perma.cc/MD24-E8M7>.

¹⁰ Subhash Kashyap, *Our Parliament: An Introduction to the Parliament of India* 191 (National Book Trust, India, 2011).

¹¹ *Parliamentary Committees*, Parliament of India, <https://perma.cc/X64A-CHZ8>; *Parliamentary Committees*, Know India, <https://perma.cc/T55C-CQ9P>.

¹² Sanat Kanwar, *The Importance of Parliamentary Committees*, PRS Legislative Research (Sept. 19, 2019), <https://perma.cc/NKL4-HE3U>.

¹³ Rajya Sabha, *supra* note 4.

¹⁴ Ch. 3: *Parliamentary Committees*, in Lok Sabha Secretariat, *Hand Book for Members of Lok Sabha* 138 (17th ed. May 2019), <https://perma.cc/9L4Y-X4E6>.

A. Establishment and Functions of Ad Hoc Inquiry Committees

The work of ad hoc committees is by and large regulated by the Rules of Procedure and Conduct of Business of the particular house, directions of the speaker/ chairman of that house, and other parliamentary practices and conventions.

The establishment and workings of parliamentary committees in the Lok Sabha are governed by Rules 253 through 286 and 389 of the Rules of Procedure and Conduct of Business in Lok Sabha.¹⁵ Most of these rules are of a general nature and apply to both standing and ad hoc committees. Rule 254(1) states that “members of a Committee shall be appointed or elected by the House on a motion made, or nominated by the Speaker as the case may be.”¹⁶

Committees may be constituted or established by provisions of the Rules of Procedure of a particular house, motion or resolution adopted by a House, “inherent powers” of the Presiding officers (Speaker/Chairman), or an Act of Parliament.¹⁷ JPCs may be constituted “jointly by both the Houses on the motion adopted by one House and concurred in by the other” or “the Presiding Officers of both the Houses in consultation with each other.”¹⁸

According to Anoop Mishra, Secretary General of the Lok Sabha, the “constitution, composition and functions” of these committees established by the houses through motions are laid down in the motions themselves and, in the case of committees established by the presiding officers, in their terms of reference as decided by the Speaker of the Lok Sabha and Chairman of the Rajya Sabha “in consultation with each other as may be necessary subject to the relevant rules and directions relating to Parliamentary Committees.”¹⁹

B. Scope and Length of Inquiry

House rules of procedure do not appear to limit the subject matter scope or duration of a committee of inquiry; these matters appear to be addressed in the terms of reference of a committee or in the motion passed to establish the committee. If a committee cannot finish its work by the scheduled time it may seek an extension.²⁰

However, there are rules that limit a house in certain matters that are sub judice (under adjudication by a court or other quasi-judicial body), and these matters cannot be raised in the

¹⁵ Lok Sabha Secretariat, Rules of Procedure and Conduct of Business in Lok Sabha (16th ed. 2014), <https://perma.cc/G2XQ-YYL8>.

¹⁶ Id. Rule 254(1).

¹⁷ Ministry of Parliamentary Affairs, *Manual of Parliamentary Procedures in the Government of India* ¶ 12.1.1 (May 2018), <https://perma.cc/7MCV-LKEP>.

¹⁸ Rajya Sabha Secretariat, *supra* note 8, at 947.

¹⁹ Communication from Mr. Anoop Mishra, Secretary General, Lok Sabha, India, on *The Committee System in India: Effectiveness in Enforcing Executive Accountability* (Mar. 2015), <https://perma.cc/32LU-9ML8>.

²⁰ Lok Sabha Secretariat, *Report of the Joint Parliamentary Committee (JPC) to Examine Matters Relating to Allocation and Pricing of Telecom Licenses and Spectrum (Fifteenth Lok Sabha)* vii (Oct. 2013), <https://perma.cc/XHQ7-4NNQ>.

house through questions,²¹ motions,²² petitions,²³ and resolutions.²⁴ According to the publication *Rajya Sabha at Work*,

[m]embers cannot refer to any matter of fact on which a judicial decision is pending. Subject to the provisions of the Constitution and rules, there is freedom of speech in Parliament. Certain restrictions on this freedom have, to a limited degree, been self-imposed. One such restriction is that discussions on matters pending adjudication before courts of law should be avoided on the floor of the House, so that courts function uninfluenced by anything said outside the ambit of trial in dealing with such matters. The question whether a particular matter is sub judice is decided by the Chairman on the facts and circumstances of each case.²⁵

For example, in the Lok Sabha Rules of Procedure, house motions that raise discussion in relation to a matter pending before a quasi-judicial body or commission are subject to this Rule:

188. No motion which seeks to raise discussion on a matter pending before any statutory tribunal or statutory authority performing any judicial or quasijudicial functions or any commission or court of enquiry appointed to enquire into or investigate, any matter shall ordinarily be permitted to be moved:

Provided that the Speaker may, in own discretion, allow such matter being raised in the House as is concerned with the procedure or subject or stage of enquiry if the Speaker is satisfied that it is not likely to prejudice the consideration of such matter by the statutory tribunal, statutory authority, commission or court of enquiry.²⁶

Also when speaking in the House, members are subject to the rule that “[a] member while speaking shall not—“refer to any matter of fact on which a judicial decision is pending.”²⁷ It appears that as a matter of convention and practice, the sub judice rule also extends to parliamentary committees and that “[c]ommittees do not take those subjects for examination where the issue is pending in the Courts.” However, the rule is not absolute; under the direction of the Speaker, Parliament may depart from the rule “in case a topic of national importance has to be discussed.”²⁸

²¹ Lok Sabha Secretariat, Rules of Procedure and Conduct of Business in Lok Sabha, *supra* note 15, Rule 41(2)(xxiii).

²² Id. Rules 59 (adjournment motions), 188 (motions), 210(xii) (cut motions)

²³ Id. Rule 160(iii)(a).

²⁴ Id. Rule 175.

²⁵ Ch. 26, *General Rules of Procedure*, in Rajya Sabha Secretariat, *Rajya Sabha at Work* 972 (3rd ed. 2017), <https://perma.cc/7P6R-F8VN>.

²⁶ Lok Sabha Secretariat, Rules of Procedure and Conduct of Business in Lok Sabha, *supra* note 15, Rule 188.

²⁷ Id. Rule 352(i).

²⁸ *House Panels Told Not to Pick Sub-judice Issues*, Hindustan Times (Aug. 25 2020), <https://perma.cc/MHQ4-LBKW>.

C. Investigative Powers

Committees appear to have “limited powers” to call for documents and witnesses. Under the Lok Sabha procedure rules, Committees have the power to take evidence; request documents, papers, and records; and summon persons. If any “question arises whether the evidence of a person or the production of a document is relevant for the purposes of the Committee, the question shall be referred to the Speaker whose decision shall be final.”²⁹ However, the “[g]overnment may decline to produce a document on the ground that its disclosure would be prejudicial to the safety or interest of the State.”³⁰ Ministers may also be summoned unless there are specific committee rules that do not permit it. A request must be made to the Speaker by the Chairman of the Committee [to permit the Committee to call for written information and testimony from a Minister].³¹ According to one journal article,

. . . the onus is on the committee to request access to documents and other relevant evidence. This often impedes effective scrutiny since members do not have adequate information on what documents to request access to. One of the first changes required is therefore to mandate that the government undertakes maximum disclosure on its own, rather than wait for the committee to request for additional information.³²

A committee may, under the direction of the Speaker, permit a witness to be heard by a counsel appointed by the witness and approved by the committee and an oath may be administered. The rules for the examination of witnesses before a committee are conducted through Rule 273. However, committees appear to “enjoy no contempt powers to ensure such testimony. Such power has to be exercised by reference to the Speaker/Chairman of the House.”³³ Evidence, reports, and proceedings are treated as confidential but may be presented to the relevant house. Similar rules are found in chapter XVII-C of the Rules of Procedure and Conduct of Business in the Rajya Sabha.

As noted earlier, the Indian Parliament may also establish JPCs to “conduct investigative oversight” on particular issues. These committees are “conferred subject matter jurisdiction and investigative powers through resolutions passed on the floors of both Houses. Such powers are however, largely similar to powers ordinarily enjoyed by standing committees.”³⁴

²⁹ Lok Sabha Secretariat, Rules of Procedure and Conduct of Business in Lok Sabha, *supra* note 15, Rule 270.

³⁰ *Id.*

³¹ *Can Joint Parliamentary Committee (JPC) Summon Ministers?*, PRS Legislative Research Blog (Dec. 21, 2010), <https://perma.cc/XE5T-WCDD>.

³² Anirudh Burman, *Legal Framework for the Parliamentary Oversight of the Executive in India*, 6(3) NUJS L. Rev. 387, 421 (2013), <https://perma.cc/6NEA-BA7S>.

³³ *Id.*

³⁴ *Id.* at 422.

D. Standing Committees and Other Inquiry Bodies

Department-related Parliamentary Standing Committees and other standing committees are subject to the same general rules and powers as outlined above. Some standing committees, such as the Committee on Ethics, which investigates complaints related to the unethical conduct of a member of a house of Parliament, have separate or additional rules in the rules of procedure that govern their constitution, function, and procedure. Committees may also lay down their own procedure, from time to time, for examination of matters referred to it.

Under the Judges (Inquiry) Act, 1968,³⁵ Parliament, through a motion, may establish an inquiry committee made up of senior members of the judiciary and an eminent jurist to investigate the misbehavior of a judge of the superior judiciary, frame charges, and impeach the judge.³⁶

Notably, government ministries and departments may also establish high-level committees and commissions upon approval of the Prime Minister through the Cabinet Secretary,³⁷ to investigate or inquire into matters.³⁸ Under the procedure Members of Parliament may be nominated as members of these Commissions/Committees, but prior approval of the Minister of Parliamentary Affairs should be obtained.

Moreover, a commission of inquiry may be established by the central or state government through a notification in the official gazette (subject to the passage of a resolution in each house of Parliament or the state legislature) under the Commissions of Inquiry Act, 1952.³⁹ Such a commission is “for the purpose of making an inquiry into any definite matter of public importance and performing such functions and within such time as may be specified in the notification.”⁴⁰

³⁵ Judges (Inquiry) Act, No. 51 of 1968, <https://perma.cc/NKK9-8YZ8>.

³⁶ *FAQ on the Process of Impeachment of Judges*, PRS Legislative Research Blog (Dec. 21, 2010), <https://perma.cc/GD6J-9E9Z>.

³⁷ The term “High-Level Committee/Commission” means a committee or commission presided over by a high ranking dignitary, e.g., a minister, judge of the Supreme Court, vice-chancellor, etc., which inter alia includes prominent persons in public life as members.

³⁸ Instructions on Constitution/Re-constitution of High Level Commission/Committees Etc., Circular No. 1/16/1/2000-Cab. (Apr. 15, 2002), <https://perma.cc/Y796-943W>.

³⁹ Commission of Inquiry Act, No. 60 of 1952, <https://perma.cc/NE2M-AP3Q>.

⁴⁰ Id. § 3(1).

Israel

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SUMMARY The Knesset (Israel’s parliament) may appoint committees of inquiry to investigate issues of “special national importance.” The law does not define what types of issues qualify as such. Knesset rules of procedures regulate the term and powers enjoyed by parliamentary inquiry committees, as well as the sanctions that may be levied for noncompliance with committees’ summonses and requests for information. Subject to specified exceptions, the hearings and records of proceedings of committees of inquiry are open to the public. Inquiry committees’ reports may be delivered to the Knesset plenum and may result in a call for government action.

I. General Framework

In addition to legislative work, parliamentary oversight of government actions has been considered one of the main duties of the Knesset (Israel’s parliament).¹ Parliamentary oversight is mainly conducted by Knesset committees, where substantive, focused, and ongoing discussion can take place, as compared with proceedings in the plenum.²

There are generally four types of Knesset committees: permanent Knesset committees, special Knesset committees with a limited term, the Ethics Committee, and parliamentary inquiry committees (PICs). PICs “are appointed by the plenum to deal with particular issues [that are] viewed by the Knesset as having special national importance.”³

To date, 26 PICs have been formed in Israel, including four that were established twice in two consecutive sessions.⁴ The latest PIC was appointed on July 6, 2017, to investigate the conduct of the financial system regarding credit arrangements for large business borrowers.⁵

¹ See, e.g., KATEF, *The Work of KATEF: The Parliamentary Oversight Coordination Unit*, <https://perma.cc/GA29-9B98> (citing statements on the importance of parliamentary review by John Stuart Mill, *Considerations on Representative Government*, ch. V (1861), and Montesquieu, *The Spirit of the Laws*, bk. XI, ch. VI (Nugent trans., 1748 [1750])).

² Dana Blander et al., *Parliamentary Commissions of Inquiry as a Mechanism for Oversight of the Executive Branch*, 140 Pol’y Res. 8 (Israel Democracy Institute, Dec. 2019), <https://perma.cc/UB6J-JNWG> (in Hebrew).

³ *Knesset Committees*, The Knesset, <https://perma.cc/S2CH-JSS8>.

⁴ Blander et al., *supra* note 2, at 140.

⁵ *Parliamentary Commissions of Inquiry*, The Knesset, <https://perma.cc/H55Q-A3L6>.

II. Parliamentary Committees of Inquiry

A. Creation and Legal Basis

The establishment of PICs is authorized by Basic Law: the Knesset:

The Knesset may appoint commissions of inquiry—either by empowering one of the permanent committees in that behalf or by electing a commission from among its members—to investigate matters designated by the Knesset; the powers and functions of a commission of inquiry shall be prescribed by the Knesset; every commission of inquiry shall include also representatives of factions which do not participate in the Government, in accordance with the relative strength of the factions in the Knesset.⁶

The establishment and operation of PICs is regulated by the Knesset Rules of Procedure.⁷ Accordingly, a proposal for the establishment of a PIC may be submitted by a member of the Knesset (MK) who is not a minister or deputy minister, by several MKs, or by a committee of the Knesset.⁸ If approved by the Knesset session dedicated for setting the Knesset agenda and preliminary consideration of bills, the proposal will be transferred to the Knesset House Committee (KHC)⁹ for deliberation. The KHC must prepare its own proposal within 30 days following receipt of the initial proposal, but may also recommend the proposal's removal from the agenda.¹⁰

A proposal by the KHC must specify the composition of the PIC, its powers, and its functions, and may include a proposed term of office. The number of members of a PIC must not exceed 11 and, in a proposal to establish a committee not authorized as a standing committee, will include the member who proposed it, if so requested.¹¹ KHC proposals are put to a vote by the Knesset plenum in accordance with the Knesset Rules of Procedure.¹²

B. Subject Matter of the Inquiry

The Knesset Rules of Procedure do not specify what types of issues are of “special national importance” and thus an appropriate subject for a PIC.

There is no explicit prohibition on the creation of a PIC if the same facts are also subject to legal proceedings. In accordance with the Courts Law (Consolidated Version) 5744-1984, as amended, however, a publication about a criminal matter pending in court for the purpose of influencing

⁶ Basic Law: The Knesset § 22, Sefer HaHukim [SH] [Book of Laws (official gazette)] 5718 No. 244 p. 69, <https://perma.cc/REA8-W8NH> (unofficial translation).

⁷ Knesset Rules of Procedure (Apr. 30, 2019), <https://perma.cc/3ZZM-4GQM> (in Hebrew).

⁸ Id. Rule No. 128(a).

⁹ Knesset House committee, <https://perma.cc/GQW9-LS7X>.

¹⁰ Knesset Rules of Procedure, Rule No. 129(a).

¹¹ Id. Rule No. 129(b).

¹² Id. Rule No. 131.

the course of the trial or its results, or while foreseeing such influence as a likely possibility, is unlawful if the publication may have such influence.¹³

While a PIC is not precluded from continuing an ongoing investigation when legal proceedings on the same facts are initiated after the PIC's establishment, it appears that a publication of information regarding the PIC's proceedings under these circumstances might be subject to the conditions specified under the Courts Law.

C. PIC Time Limits

The authorities of a PIC expire at the end of the Knesset term of office in which the PIC was established, at the end of the period that was determined by the Knesset for the PIC's operation, following the submission of the PIC's report to the Knesset and notification that it has ended its work, or upon the Knesset's decision to end the PIC's term.

A PIC's tenure may be extended by the KHC but cannot exceed the tenure of the Knesset in which it was established.¹⁴

D. Investigative Powers

Unless otherwise determined by the Knesset, a PIC has the same powers enjoyed by standing committees with respect to hearing procedures, summoning witnesses, and receiving information.¹⁵

1. Summonses and Information Requests

Knesset committees may summon to their meetings ministers, deputy ministers, other public officials, and employees of public bodies (witnesses). Committees may require witnesses to provide information including documents and reports on the activity of the body in which they serve in connection with the subject of the hearing.¹⁶ A summons or a request for information should be issued a week before the committee hearing.¹⁷

2. Exceptions

The appearance and provision of information by witnesses from the civil service, municipal authorities, religious councils, corporations established by law, or government corporations is mandatory. An exception applies to the disclosure by the government of information "required for the protection of state security and foreign relations or international trade connections or the

¹³ Courts Law [Consolidated Version] 5744-1984, SH 5744 No. 1123 p. 198, as amended, § 71(a).

¹⁴ Knesset Rules of Procedure, Rule No. 136.

¹⁵ Id. Rule No. 135(a).

¹⁶ Id. Rule No. 123(a)-(c).

¹⁷ Id. Rule No. 123(f).

protection of a legally mandated privilege.”¹⁸ Similarly excepted is information the disclosure of which “entails a violation of a law, or of a professional duty or an obligation of trust to which [the witness] is bound by law.”¹⁹

3. *Rights and Summons Procedures*

According to the Knesset Rules of Procedure, a notice that information cannot be provided to the committee due to the above exceptions should be submitted to the head of the committee along with an explanation of the reasons, and at the request of the submitter will remain confidential.²⁰

Witnesses before PICs have the same rights as witnesses appearing before a court.²¹ Summonses are issued “under the auspices of the relevant minister or with the minister’s knowledge,” or in the case of summonses for persons not in the civil service “under the auspices of the head of the body in which the [person summoned] serves; However, the appointed minister or the head of the body in which [the person summoned] serves may inform the committee that he/she himself/herself will appear [instead].”²²

4. *Sanctions for Noncompliance*

Noncompliance with a committee’s summons or a request for information without notice of qualification under the above recognized exceptions may result in notification to the minister or to the head of the relevant body through which, or with the knowledge of whom, the summons or the request for information was made.²³

With the approval of the speaker of the Knesset, the committee may also request that the civil service commission or another relevant body authorized to hear complaints on disciplinary matters exercise its authority over the witness. A copy of such a request will also be delivered to the minister or the head of the relevant body with which the witness is affiliated.²⁴

In accordance with a 2018 directive issued by the speaker of the Knesset, a special committee was established to review and determine the reasonableness of justifications for noncompliance with committee summonses. The special committee is chaired by the speaker of the Knesset and by two deputies—one from the coalition factions and one of from the opposition factions.²⁵ If no

¹⁸ Basic Law: The Government, § 42(a), SH 5761 No. 1780 p.158, as amended, <https://perma.cc/VZX2-8XBB> (unofficial translation) (applied under Knesset Rules of Procedure, Rule No. 124(a)).

¹⁹ Basic Law: The Knesset § 21(b), SH 5716 No. 244 p. 69, as amended, <https://perma.cc/QEZ5-D8XE> (unofficial translation) (applied under Knesset Rules of Procedure, Rule No. 124(a)).

²⁰ Knesset Rules of Procedure, Rule No. 124(b).

²¹ Basic Law: The Knesset § 21(b).

²² *Id.*

²³ *Id.* Rule No. 127(a).

²⁴ *Id.* Rule No. 127(b).

²⁵ Directive Regarding Violation of a Duty to Appear before Knesset Committees §§ 1-4 (Mar. 5, 2018), Knesset Rules of Procedures, Addendum, at 177-78.

reasonable justification for noncompliance has been recognized, the special committee may deny the entry, permanent entry, or entry with vehicle permit of the witness, the witness's supervisor, and a "person or group of persons from the same office or body."²⁶

The special committee is also authorized to submit a disciplinary complaint to the person in charge of discipline at the witness's place of work. In addition, the special committee may recommend to the Knesset presidency or to the chairmen of the Knesset committees not to include in the agenda of the Knesset or of any of its committees any issue that is promoted by the office or body whose representative did not appear before the committee.²⁷

5. *Presidential and Prime Ministerial Immunity*

The president and MKs, including the prime minister,²⁸ cannot be forced to disclose information acquired in the course of fulfilling their official duties.²⁹

E. Publicity

PIC meetings are open to the public³⁰ and meeting minutes are posted on the Knesset's website.³¹ Open access does not apply, however, to minutes of hearings on issues determined by the KHC to affect "state security, its foreign relations or an essential economic interest" (essential state interests).³²

As in other types of Knesset committees, full or partial public access to minutes of PIC hearings may also be limited upon a determination by the committee's chairman for the protection of essential state interests, the interests of a minor or any other "helpless" person, or "at the request of the person who attended the meeting—[that] submitting the protocol for public review may cause harm to him or others."³³ Limitation of access under these conditions, however, does not affect the right of MKs to review the meeting minutes of a committee or subcommittee on which they serve as permanent members or as permanent deputy members.³⁴ Such limitation similarly does not apply to persons who attended the committee meeting and wish to review the minutes;

²⁶ Id. § 5(a)-(c).

²⁷ Id. § 5(d)-(e).

²⁸ Basic Law: The Government § 13.

²⁹ Basic Law: The President of the State § 13(b), SH 5724 No. 428 p. 118, as amended, <https://perma.cc/P6CS-X9L8> (unofficial translation); Knesset Members Immunities, Rights and Obligations, 5711-1951, § 1(b), SH 5711 No. 80 p. 228.

³⁰ Knesset Rules of Procedure, Rule No. 118.

³¹ Id. Rule No. 120(a).

³² Id. Rule No. 129(c).

³³ Id. Rule No. 120(d).

³⁴ Id. Rule No. 120(e)(1).

they should be afforded the opportunity to review that part of the minutes reflecting the period of their attendance.³⁵

F. Outcomes

A report detailing a PIC's actions and conclusions will be delivered to the Knesset. The report may include a minority report or an interim report, as relevant.³⁶ The regulations authorize the speaker of the Knesset to decide to hold a hearing on such reports based on the individual participation of MKs rather than on representation by faction. During the hearing the PIC's chairman may open the floor for discussion and summarize the report for purposes of a vote.³⁷

If a decision calling for the government to act is reached, the Knesset speaker will inform the relevant minister (or if it is not clear who this is, the prime minister) of the decision. The minister or prime minister must then notify the speaker in writing of any action taken within six months from the date of the decision.³⁸

III. Right of Inquiry by Other Means

As previously noted, a PIC has the same powers enjoyed by standing committees with respect to hearing procedures, summoning witnesses, and receiving information.³⁹ Individual MKs do not appear to enjoy investigative powers similar to those enjoyed by PICs.

³⁵ Id. Rule No. 120(e)(2).

³⁶ Id. Rule No. 135(b).

³⁷ Id. Rule No. 135(c).

³⁸ Id. Rule Nos. 135(c) & 56(d).

³⁹ See section II. D. of this report; Knesset Rules of Procedure Rule No. 135(a).

Japan

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SUMMARY Each House of Japan’s Diet may conduct investigations in relation to the government. In practice, investigations are conducted by committees. For investigation of the Fukushima nuclear accident, a special committee of experts was created by legislation and the Houses used their investigative powers for the committee’s operations.

Houses of the Diet may investigate any matters related to the government if the Diet’s general power covers those matters. Each House may demand the presence and testimony of witnesses, and the production of records. The Act on Oaths and Testimony of Witnesses in the House provides penalties for certain acts of noncompliance. However, the outcome of such investigations is not legally binding.

Each member of a House may ask a question to the Cabinet upon approval of the presiding officer of that House. The Cabinet is obligated to answer the question.

I. Constitutional Right of Inquiry

The Diet (Japanese parliament) consists of two houses: the House of Representatives and the House of Councillors.¹ Each House has a right of inquiry under the Constitution of Japan, which states “[e]ach House may conduct investigations in relation to government, and may demand the presence and testimony of witnesses, and the production of records.”²

II. Committees

Plenary sessions of each House may conduct investigations; however, in practice, committees exercise investigative powers within their jurisdiction.³

There are two kinds of committees—standing committees and special committees.⁴ Each House has seventeen standing committees, such as the Committees on the Cabinet, Internal Affairs and Communications, Judicial Affairs, Foreign Affairs, and Financial Affairs.⁵ Each standing committee of a House of the Diet has a professional advisor and researchers on staff.⁶ Special

¹ 日本国憲法 [Constitution of Japan], 1946, art. 42, <https://perma.cc/3Y8U-CL9S>.

² Id. art. 62.

³ 委員会の活動（２）国政調査 [Activities of Committees (2) Investigation in Relation to Government], House of Councillors, <https://perma.cc/M8PV-GUXU>.

⁴ Diet Act, Act No. 89 of 1947, amended by Act No. 86 of 2014, art. 40, <https://perma.cc/2FLJ-SBRG>.

⁵ Id. art. 41.

⁶ Id. art. 43.

committees are established when a House deems it necessary to consider a particular matter or a matter that does not come under the jurisdiction of any standing committee.⁷ Each House has established special committees for the term of the session.⁸ For example, since 2004 both Houses have established a Special Committee on the Abduction Issue by North Korea at the beginning of each session.⁹ Membership of standing committees and special committees is allocated to political groups in the House in proportion to their numerical strength.¹⁰

In addition, research committees of the House of Councillors may exercise investigative powers. The House of Councillors may set up research committees to conduct long-term and comprehensive research relating to fundamental matters of government.¹¹ For example, the House of Councillors established the Research Committee on Natural Resources and Energy.¹²

Spectators are generally not allowed at meetings of House committees. However, meetings may be broadcast by media.¹³ Alternatively, committees may decide to conduct closed-door proceedings.¹⁴ A record of the proceedings is made even for closed-door meetings, but no part of the record of such proceedings that the House has decided to keep secret may be made public.¹⁵

A House usually does not create a new committee to investigate specific matters, though several committees were established for investigative purposes soon after the end of the Second World War and the enactment of the current Constitution. For example, the House of Representatives established the Special Committee to Investigate Concealment of Hoarded Goods at the end of the World War II.¹⁶

⁷ Id. art. 45, para. 1.

⁸ 委員会 [Committees], 国会の基礎知識 [Basic Knowledge of the Diet], House of Councillors, <https://perma.cc/D656-NDNR>.

⁹ 寺林裕介 [Yusuke Terabayashi], 北朝鮮による日本人拉致に対する我が国の取組 [Japan's Efforts against Abductions of Japanese Nationals by North Korea], 立法と調査 No. 334, at 100 (Nov. 2012), <https://perma.cc/3BY6-RTRP>.

¹⁰ Diet Act art. 46, para. 1.

¹¹ Id. arts. 45-II & 54-IV.

¹² 今国会情報 第 201 回国会（常会）（令和 2 年 1 月 20 日～令和 2 年 6 月 17 日）[Current Diet Session Information, No. 201 Session (Plenary) (January 20, 2020 – June 17, 2020)], House of Councillors, <https://perma.cc/94LH-Z7S3>.

¹³ Diet Act art. 52, para. 2.

¹⁴ Id. art. 52, para. 2.

¹⁵ 11 月 7 日テロ特・「秘密会」の議事録が公開される理由 [Reason of Publication of Record of Proceedings of Terrorist-Special Secret Meeting on November 7], Hosaka Nobuto Official Blog (Nov. 16, 2007), <https://perma.cc/8F23-AWUJ>.

¹⁶ 白井誠 [Makoto Shirai], 国会法 [Diet Act], at 183 (2013), bibliographic information at <https://lcn.loc.gov/2014394732>.

After the Great East Japan Earthquake in 2011 the Diet enacted a law to establish the Fukushima Nuclear Accident Independent Investigation Commission as a special case.¹⁷ Its tasks included investigation of the direct and indirect causes of the accident and resulting damage.¹⁸ The chairperson and members of the Commission were experts in various fields who were not Diet members.¹⁹ The law gave them six months to complete their work and submit a report on their findings and recommendations to both Houses.²⁰ The Committee was authorized to seek the appearance of witnesses and demand that national and local governments submit materials.²¹ In addition, the Commission could request the Joint Committee of Both Houses to use the investigative power of the Houses with regard to particular matters.²² The Diet determined that experts would be better able to conduct the investigation and that it would take a supporting role. Because investigative power belongs to each of the Houses, they could not authorize the Committee to directly utilize it. Upon request of the Committee, the Houses used their investigative power in place of the Committee.²³ The meetings were open to the public in principle.²⁴ The Committee could make them closed-door, and in such cases some parts of the record of proceedings could be kept secret.²⁵

III. Subject Matter of the Inquiry

Houses of the Diet may investigate any matters in relation to the government if the Diet's general power covers those matters.²⁶ For example, affairs within a private organization are not matters under the Diet's power, therefore a House cannot use its investigative power over such matters.²⁷

Scholars generally think it is acceptable, with some limitations, for a House to investigate a case that public prosecutors are already investigating.²⁸ Regarding the limitations, a district court decision has stated that, when there is a risk to the independence of the judiciary or fairness of criminal justice, a parliamentary investigation is limited. The court suggested the following

¹⁷ 東京電力福島原子力発電所事故調査委員会法 [Act on Tokyo Electric Fukushima Nuclear Plant Accident Investigation Committee], Act No. 112 of 2011 (expired), <https://perma.cc/85RK-3AZ6>.

¹⁸ Id. art. 1.

¹⁹ Id. art. 3.

²⁰ Id. art. 16.

²¹ Id. arts. 11 & 12.

²² Id. art. 15.

²³ 岡田裕二 [Yuji Okada], 国会原発事故調査委員会設置の経緯と法制上の課題 [Background of the Diet Nuclear Plant Accident Investigation Committee and Legislative Tasks], 法律のひろば 2012-4, 24, pp. 30-31, <https://perma.cc/YM4Q-QSWF>.

²⁴ Act on Tokyo Electric Fukushima Nuclear Plant Accident Investigation Committee art. 7, para. 2.

²⁵ Id. art. 7, para. 4.

²⁶ 甲斐素直 [Sunao Kai], 国政調査権の意義と限界 [Contents of Parliament Investigative Power and Its Limitations], <https://perma.cc/3PBV-M95G>.

²⁷ Id.

²⁸ Id.

examples: (a) investigations that seek to exert political pressure on the exercise of the prosecution's power to prosecute or not prosecute; (b) investigations that are directly related to the contents of prosecutors' investigations and the prosecution of a case; and (c) investigations conducted by methods that seriously hinder the continuation of the investigation.²⁹

In relation to the judicial power, a House of the Diet may investigate matters relating to the judicial system. When the same facts are also subject to legal proceedings, a House may investigate the matter unless it intends to criticize the specific judgment or how the presiding judge controls court proceedings.³⁰

IV. Investigative Powers

The Constitution states that each House may “demand the presence and testimony of witnesses, and the production of records.”³¹ The Diet Act and the Act on Oaths and Testimony of Witnesses in the House (Testimony in the Diet Act)³² prescribes more details. While the Diet Act does not contain enforcement provisions, the Testimony in the House Act provides penalties for some acts of noncompliance.

A. Dispatch of Members

A House may send its members out to conduct investigations on site, such as inspections and obtaining testimony.³³ However, members do not have the authority to forcibly search a site.

B. Government Documents and Reports

The Cabinet and public agencies must comply with the demands of a House for the production of reports and records necessary for consideration or investigation.³⁴ In practice, the committee and its members often demand that the Cabinet and public agencies submit reports or their records without a formal procedure. However, when the Cabinet and public agencies refuse to submit reports or records, the committee holds a board meeting and decides whether the committee will demand the materials. Demands are made by committee resolution, with the

²⁹ 日商岩井事件（海部関係）判決 [Nissho-Iwai Case (Re. Kaifu) Judgment], Tokyo Dist. Ct., 1979 (特々) No. 996 (July 24, 1980), <https://perma.cc/65G4-QELD>.

³⁰ 統治機構のあり方に関する調査小委員会 [Sub-Committee Concerning Governance System], 「司法制度及び憲法裁判所（憲法の有権解釈権の所在の視点から）」に関する基礎的資料 [Basic Materials Regarding the “Judicial System and Constitutional Court (Under Consideration of Where the Right to Officially Interpret the Constitution Belongs)”], 衆憲資 No. 83 (May 15, 2003), <https://perma.cc/7VEA-8SP4>.

³¹ Constitution art. 62.

³² 議院における証人の宣誓及び証言等に関する法律 [Act on Oaths and Testimony of Witnesses in the Houses of the Diet (Testimony in the Diet Act)], Act No. 225 of 1947, amended by Act No. 86 of 2014, <https://perma.cc/BB68-2BCA>.

³³ Diet Act art. 103.

³⁴ Id. art. 104, para 1.

chairperson of the committee communicating the demand for reports or records to the Cabinet or the public agency.³⁵ There is no penalty for noncompliance with such demands.

C. Testimony and Documents

When a House requests that a person appear as a witness or submit a document, the person must comply with the request.³⁶ Travelling expenses and a per diem are paid to witnesses.³⁷ When it is difficult for a person to appear as a witness in the requesting House due to illness or other reasons, and when it is particularly necessary to obtain the testimony for examination of bills or investigations in relation to the government, the House may demand that the person testify at the person's location or at another designated place. In such cases, the House dispatches two or more of its members to take the testimony.³⁸

A witness may refuse to give testimony when there is a concern that such testimony may result in criminal prosecution or conviction against

- the witness's spouse, blood relatives within the third degree of kinship, relatives by affinity within the second degree of kinship, or a person who formerly had such relationship with the witness;
- the witness's guardian or supervisor of such guardian, or the witness's legal supporter; or
- a person for whom the witness is a guardian, supervisor of a guardian, or legal supporter.³⁹

Witnesses must take an oath before testifying.⁴⁰ If a witness makes a false statement, he or she is punishable by imprisonment for three months to 10 years.⁴¹ A witness who does not appear, refuses to provide testimony at his or her present location, fails to submit the required documents, or refuses the oath or testimony without justifiable reasons is punishable by imprisonment for up to one year and/or a fine of up to 100,000 yen (about US\$940).⁴²

The summons must include a statement that explains when the witness may refuse statements during the testimony and in which cases the witness may be punished.⁴³ The same things are explained to the witness before he or she takes an oath.⁴⁴ Upon permission of the House, a witness

³⁵ 原度 [Watari Hara], 議会法概論 [Survey of Parliament Laws] 361 (2005), bibliographic information at <https://lccn.loc.gov/2005383869>.

³⁶ Testimony in the Diet Act art. 1.

³⁷ Diet Act art. 106.

³⁸ Testimony in the Diet Act art. 1-II.

³⁹ Id. art. 4.

⁴⁰ Id. art. 2.

⁴¹ Id. art. 6.

⁴² Id. art. 7.

⁴³ Id. art. 1-III.

⁴⁴ Id. art. 1-V.

may be accompanied by a lawyer who provides advice on what the witness may refuse to answer.⁴⁵

D. Government Secrets

1. General Secrets

The Cabinet or a public agency may refuse the House or House committee's demand for documents and records when those materials contain secrets. However it must make a prima facie showing of the reason supporting the refusal.⁴⁶ If the House or the committee rejects the stated reason, the House or the committee may demand a declaration by the Cabinet or agency that the production of the reports and records would be gravely detrimental to the national interest. If the Cabinet or agency makes such a declaration within ten days from the demand, it does not have to submit the material.⁴⁷

A public employee or a former public employee may also refuse to provide testimony and/or submit documents when the testimony or documents relate to government secrets. When the witness is or was a public employee and the witness or the public office has claimed that the requested testimony and/or documents relate to business confidentiality, the House may not seek them without the approval of the public office or the public office's supervisory agency.⁴⁸ A public office or its supervisory agency's refusal to provide approval must be supported by a prima facie showing of the reason. If the House or committee rejects the stated reason, the same procedure concerning a Cabinet declaration follows.⁴⁹

2. Specially Designated Secrets

Under the Act on the Protection of Specially Designated Secrets, the head of an administrative organ must identify "specially designated secrets" in connection with the affairs under its jurisdiction. Specially designated secrets are information that is publicly undisclosed and particularly required to be kept secret due to the risk of causing severe damage to Japan's national security.⁵⁰ The classification of information as a specially designated secret is limited to those cases prescribed in the Act.⁵¹ The Act allows the head of an administrative organ to provide such information to a House or a committee of a House for investigation if appropriate measures to protect the specially designated secret are taken and if the head of the administrative organ finds that the provision of the specially designated secret has no risk of causing severe damage to

⁴⁵ Id. art. 1-IV.

⁴⁶ Diet Act art. 104, para 2.

⁴⁷ Id. art. 104, para. 3-4.

⁴⁸ Testimony in the Diet Act art. 5, para. 1.

⁴⁹ Id. art. 5, para. 2-4.

⁵⁰ Act on the Protection of Specially Designated Secrets, Act No. 108 of 2013, art. 3, para. 1, <https://perma.cc/PTB8-V74N>.

⁵¹ Id. ch. III.

Japan's national security.⁵² When reports or records containing information comprising specially designated secrets are submitted to a House or a committee, the reports and records are disclosed to and used only as necessary for investigation or examination by members of the House, committee, or its officials.⁵³

On the other hand, the Diet Act obligates each House to establish a Board of Oversight and Review of Specially Designated Secrets in order to monitor government operation of the system for the protection of specially designated secrets. The Board may review the appropriateness of decisions made by the heads of administrative organs in response to requests for disclosure from a House or its committees.⁵⁴

If reports or records that a House or a committee has requested from the Cabinet or an administrative organ contain information that includes specially designated secrets, the head of the administrative organ may decline to provide them on the ground that doing so would be gravely detrimental to the national interest.⁵⁵ The House or the committee may demand the declaration of such by the Cabinet or the administrative organ, similarly to the case for the demand of reports and records of general secrets. Instead, the House or the committee may request the Board of Oversight and Review of Specially Designated Secrets to conduct an investigation into the head of the administrative organ's refusal.⁵⁶

When the witness is or was a public employee, and when his or her testimony or requested document involves specially designated secrets, the same procedure applies. The head of an administrative organ that designated the secret may refuse permission for the testimony or submission of the document by providing a statement of the *prima facie* reasons for declining permission. In such case, the same procedure concerning a Cabinet declaration or Board investigation follows.⁵⁷

E. Audit

Either House and any committee of either House may request that the Board of Audit carry out an audit upon specified matters when it is necessary for examination or investigation, and to produce a report on the results.⁵⁸

⁵² Id. art. 10, para. 1.

⁵³ Diet Act art. 104-III.

⁵⁴ Id. art. 102-XIII.

⁵⁵ Act on the Protection of Specially Designated Secrets art. 10, para. 1; Diet Act art. 104, paras. 2 & 3.

⁵⁶ Diet Act art. 104-II.

⁵⁷ Act on the Protection of Specially Designated Secrets art. 5-II.

⁵⁸ Diet Act art. 105.

V. Outcomes

Investigations by a House are conducted for its own use and the outcome is not legally binding.

In the case of the Fukushima Nuclear Accident Independent Investigation Commission, the Act that established the Commission obligated the Commission to submit a report and recommendations to both Houses, and provided that the Houses would send them to the Cabinet.⁵⁹ The Diet Act obligated the Cabinet to report annually to the Diet on what measures the Cabinet has taken, corresponding with the Tokyo Electric Fukushima Nuclear Plant Accident Investigation Committee's recommendation for the time being.⁶⁰ The Cabinet has taken measures and submitted a report annually to the Diet since 2013.⁶¹

VI. Individual Members

A member of a House may ask a question to the Cabinet upon approval of the presiding officer of the House. The member must present a question to the presiding officer as a concise statement in written form. When the presiding officer has not given approval, a member may raise an objection to the presiding officer. The presiding officer must then put the case to a vote of the House without debate.⁶² When the presiding officer or the House has approved the question, the presiding officer must transmit the question to the Cabinet. The Cabinet must answer within seven days from receipt. If it cannot answer within that period, the Cabinet must state clearly the reason and the time by which it will give an answer.⁶³ In recent years, an average of 900 questions have been asked annually.⁶⁴

⁵⁹ Act on Tokyo Electric Fukushima Nuclear Plant Accident Investigation Committee, Act No. 112 of 2011 (expired), art. 16.

⁶⁰ Diet Act, supp. item 11.

⁶¹ 東京電力福島原子力発電所事故調査委員会（国会事故調）の報告書を受けて講じた措置 [*Measures Taken, Corresponding with the Report of the Tokyo Electric Fukushima Nuclear Plant Accident Investigation Committee (Diet Accident Committee)*], Cabinet Office, <https://perma.cc/XNQ3-BNM8>.

⁶² Diet Act art. 74.

⁶³ Id. art. 75.

⁶⁴ 中村雄一郎 [Yuichiro Nakamura], 霞が関の嫌われ者 “質問主意書”って何? [*What Is the “Statement of Question” that Is Hated by Kasumigaseki ?*], NHK, <https://perma.cc/7YT6-QWUN>.

Mexico

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SUMMARY Mexico's Congress has the authority to investigate the performance of certain government entities and enterprises with majority state participation through investigatory committees. The Federal Audits Office of Mexico's Chamber of Representatives is tasked with ensuring that federal funds are properly spent by government-funded entities. FAO may conduct audit-related investigations.

I. Introduction

Mexico is a federal republic.¹ Congress is the country's federal legislative branch, which is comprised of the Chamber of Representatives and the Chamber of Senators.²

Both chambers of Mexico's Congress have "ordinary" (regular) committees aimed at overseeing, researching, and generally assisting Congress in the fulfillment of its duties concerning a number of specific topics.³ Specifically, the Chamber of Representatives currently has 43 such committees, including northern and southern border affairs, immigration and constitutional matters.⁴ The Senate currently has 30 committees, including foreign relations, commerce, and national defense.⁵

In addition to regular committees, Mexico's Congress may pursue specific inquiries through investigatory committees, and the Federal Audits Office of Mexico's Chamber of Representatives has the power to conduct audit-related investigations as described below in Sections II and III, respectively.

II. Committees of Inquiry

A. Creation, Legal Basis, and Subject Matter

Under Mexico's Constitution, Legislative Chambers have the authority to establish commissions to investigate the performance of decentralized (semi-independent)⁶ government entities and

¹ Constitución Política de los Estados Unidos Mexicanos, art. 40, Diario Oficial de la Federación [DOF] Feb. 5, 1917, as amended through May 8, 2020, <https://perma.cc/M4ZH-CWGJ>.

² Id. art. 50.

³ Ley Orgánica del Congreso General de los Estados Unidos Mexicanos, arts. 39, 45, 85, 90, 98, DOF Sept. 3, 1999, as amended through May 8, 2019, <https://perma.cc/NHE9-7EMC>.

⁴ Id. art. 39.

⁵ Id. art. 90.

⁶ Ley Orgánica de la Administración Pública Federal, art. 45, DOF Dec. 29, 1976, as amended through Jan. 22, 2020, <https://perma.cc/4GUU-88HW>.

enterprises with majority state participation, upon the request of a fourth of the 500 members of the Chamber of Representatives or half of the 128 Senators.⁷

A legal commentator who is an expert on congressional matters has indicated that this constitutional rule is somewhat regulated by the Law that Governs Congress's Operations and its regulations, albeit poorly.⁸ Thus, the information provided in the subsections that follow is based on relevant legal provisions (when available) as well as pertinent writings and interpretations made by this expert.

B. Sub Judice Rule

It appears that there are no clear rules on this issue.⁹ In practice, however, it has been reported that Congress has opted to defer to judicial authorities when a matter under investigation is sub judice.¹⁰

C. Time Limit

Investigation committees are temporary by law.¹¹ In practice, the resolution that creates these committees sets pertinent time limits.¹²

D. Investigative Powers

Investigative powers of committees of inquiry are not well defined by law.¹³ In practice, investigations have taken place by relying on powers applicable to ordinary committees, including requests for documents from public institutions and for experts' reports, as well as meetings with relevant officials.¹⁴

⁷ Constitución Política de los Estados Unidos Mexicanos, arts. 52, 56, 93, DOF Feb. 5, 1917, as amended through May 8, 2020, <https://perma.cc/M4ZH-CWGJ>.

⁸ Cecilia Mora Donatto, *Treinta Años de Investigaciones Parlamentarias en México (1977-2007): ¿Qué Investigaron los Diputados Federales?* 23-28 (UNAM 2013), <https://perma.cc/D9AG-YFHD>. See also Cecilia Mora Donatto, *Las Comisiones Parlamentarias de Investigación como Órganos de Control Político* 231-236 (UNAM 1998), <https://perma.cc/5ASG-45WL>.

⁹ Cecilia Mora Donatto, *Treinta Años de Investigaciones Parlamentarias en México (1977-2007): ¿Qué Investigaron los Diputados Federales?*, at 52.

¹⁰ Id. at 45, 52, 360.

¹¹ Ley Orgánica del Congreso General de los Estados Unidos Mexicanos, arts. 41, 87.

¹² Cecilia Mora Donatto, *Treinta Años de Investigaciones Parlamentarias en México (1977-2007): ¿Qué Investigaron los Diputados Federales?*, at 27.

¹³ Cecilia Mora Donatto, *Las Comisiones Parlamentarias de Investigación como Órganos de Control Político* 233-236. .

¹⁴ Id. See also Cecilia Mora Donatto, *Treinta Años de Investigaciones Parlamentarias en México (1977-2007): ¿Qué Investigaron los Diputados Federales?*, at 29, 73, 350, 358, 359; Ley Orgánica del Congreso General de los Estados Unidos Mexicanos, arts. 45, 93, 97, 98.

E. Publicity

Although congressional proceedings are generally public, certain hearings are classified, including accusations against Mexico's President, cabinet members, or other matters deemed sensitive by congressional leadership.¹⁵

F. Outcome

The results of these investigations are submitted to the President of Mexico.¹⁶

III. Investigative Powers Exercised by Other Parliamentary Bodies or Committees

The Federal Audits Office (FAO) of Mexico's Chamber of Representatives is tasked with ensuring that federal funds are properly spent by government-funded entities.¹⁷

As such, it has the power to investigate irregularities or illicit actions in the spending, management, custody, and allocation of federal funds and can make onsite audits while investigating these matters, which may take place to review relevant records necessary for the fulfillment of such investigations.¹⁸ Accordingly, audited entities must provide the assistance that the FAO requires for the exercise of its functions and, in cases of noncompliance, they may be subject to applicable legal penalties.¹⁹

IV. Investigative Powers of Individual Members of Parliament

As described in Section II above, investigative powers reside in committees rather than individual members of Parliament.

¹⁵ Ley Orgánica del Congreso General de los Estados Unidos Mexicanos, arts. 93, 139, 142-II. See also Reglamento para el Gobierno Interior del Congreso General de los Estados Unidos Mexicanos, art. 33, DOF Mar. 20, 1934, as amended through Dec. 24, 2010, <https://perma.cc/DN9U-VM66>.

¹⁶ Constitución Política de los Estados Unidos Mexicanos, art. 93.

¹⁷ Id. art. 79-I.

¹⁸ Id. art. 79-III.

¹⁹ Id. art. 79.

Norway

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SUMMARY The Norwegian Parliament exercises its right of inquiry through the work of the Standing Committee on Scrutiny and Constitutional Affairs; public committee hearings; questions and interpellations; and the Court of Impeachment. Each standing committee also has a right to start an inquiry when a minimum of one-third of its members agree. In addition, external supervisory bodies including the Office of the Auditor General of Norway, the Parliamentary Ombudsman, the Parliamentary Ombudsman for the Armed Forces, and the Parliamentary Intelligence Oversight Committee, each hold rights of inquiry.

Parliament may also create commissions of inquiry with the same investigative powers as those belonging to the standing committees. These commissions of inquiry are typically created to ascertain the responsibility for specific larger catastrophes or events affecting Norwegian citizens, such as the Scandinavian Star Fire, or the injustices against and “Norwegianization” of the Sami population. Commissions of Inquiry have the same powers as the Standing Committee for Scrutiny and Constitutional Affairs to hold public and closed hearings, request documentation, and call individuals and public figures. A commission has fulfilled its mandate when it delivers its final report to Parliament and is then automatically dissolved.

Members of Parliament (MP) also have some investigative rights, specifically to request documentation and answers from the responsible ministers either in writing or during public questions and interpellations. An MP cannot on his or her own create or request the creation of a commission of inquiry.

I. Introduction

The Norwegian Parliament (Stortinget) is unicameral, with 169 Members of Parliament (MPs).¹ Its members select the Prime Minister.² Parliament currently has twelve standing (permanent) committees:³

- Committee on Business and Industry
- Committee on Education and Research

¹ § 57 Grunnloven (LOV 1814-05-17), <https://perma.cc/H327-NJ4W>.

² § 12 Grunnloven.

³ § 12 Stortingets forretningsorden (FOR 2012-06-07-518), <https://perma.cc/4VHD-84WY>; see also Stortingets Forretningsorden - Regler for Saksbehandlingen i Stortinget, <https://perma.cc/3GGU-BUZF>. For an English-language summary of the role of the standing committees see *About the Standing Committees*, Stortinget, <https://perma.cc/5E5X-5Y8V>.

- Committee on Energy and the Environment
- Committee on Family and Cultural Affairs
- Committee on Finance and Economic Affairs
- Committee on Foreign Affairs and Defense
- Committee on Health and Care Services
- Committee on Justice
- Committee on Labor and Social Affairs
- Committee on Local Government and Public Administration
- Committee on Scrutiny and Constitutional Affairs
- Committee on Transport and Communications

The Norwegian Parliament's duty to act as a controller of the government is established in the Norwegian Constitution.⁴ Accordingly, the Norwegian Parliament may exercise its right of inquiry through the work of the Standing Committee on Scrutiny and Constitutional Affairs; in public hearings; through questions and interpellations; and through the Court of Impeachment.⁵ Each standing committee also has a right to start an inquiry when a minimum of four of its members agree.⁶ In addition, the following independent supervisory bodies hold rights of inquiry: the Office of the Auditor General of Norway (Riksrevisjon), the Parliamentary Ombudsman (Sivilombudsmannen), the Parliamentary Ombudsman for the Armed Forces (Ombudsmannen for forsvaret), and the Parliamentary Intelligence Oversight Committee (EOS utvalget).⁷

The Standing Committee on Scrutiny and Constitutional Affairs is responsible for controlling the government and the agencies that carry out the decisions that are made in Parliament as well as reviewing documents from the Auditor General, communications from the Parliamentary Ombudsman and the Parliamentary Intelligence Oversight Committee, and other issues that concern these supervisory bodies' activities.⁸ The Standing Committee on Scrutiny and Constitutional Affairs must comment on any report (*instilling*) on constitutional responsibility by another standing committee.⁹

⁴ § 75 Grunnloven (LOV-1814-05-17).

⁵ §§ 75, 86 Grunnloven. See also, *Supervisory Role*, Stortinget (Aug. 30, 2018), <https://perma.cc/KMD2-YHXE>.

⁶ § 27 Stortingets forretningsorden (FOR-2012-06-07-518), <https://perma.cc/WU8Q-QGK7>.

⁷ §§ 9,12 Lov om Riksrevisjonen (LOV-2004-05-07-21), <https://perma.cc/D67G-ARBK>; § 3 Lov om Stortingets ombudsmann for forvaltningen (sivilombudsmannsloven) (LOV-1962-06-22-8), <https://perma.cc/H54N-M4SQ>; § 3 Instruks for Forsvarets ombudsmannsnemn (FOR-1952-04-21-4287), <https://perma.cc/RBR6-GSEY>; § 1 Lov om kontroll med etterretnings-, overvåkings- og sikkerhetstjeneste (EOS-kontrollloven) (LOV-1995-02-03-7), <https://perma.cc/STD7-V43C>.

⁸ § 14 Stortingets forretningsorden.

⁹ Id. § 15. See also Stortinget, *The Norwegian Parliament Rules of Procedure and the Constitution* (2017), <https://perma.cc/6TC6-PQLH>.

All public hearings are governed by the Parliamentary Procedure Rules as well as the Rules for public hearings of inquiry.¹⁰ The purpose of these rules is to ensure that Parliament receives the information it needs to carry out its control of the government as well as to make progress in the hearings while ensuring that the rule of law is guaranteed.¹¹

II. Commissions of Inquiry in Parliament

In addition to the standing committees and the supervisory bodies, the Norwegian Parliament may create special Parliamentary commissions of inquiry, and these commissions may be tasked with reviewing and investigating special events.¹² The following are examples of such commissions:

- The Truth and Reconciliation Commission,¹³ currently investigating the Norwegian treatment of and the injustices done against the Sami population, which is set to deliver a report to the Presidium of the Parliament on September 1, 2022;
- The Scandinavian Star Commission,¹⁴ which investigated the fire on an M/S Scandinavian Star cruise ship in 1990 where 159 passengers and crew members died (including 136 Norwegians) and presented its report on June 1, 2017;
- The Mehamn Commission¹⁵ (2003–2005), which investigated the Twin Otter LN-BKN accident near Gamvik on March 11, 1982; and
- The Lund Commission¹⁶ (1994–1996) which investigated accusations of unlawful surveillance of groups of Norwegian citizens by the Norwegian security police and branches of the armed forces following 1945.

Typically, the mandate of a commission of inquiry only covers an evaluation of the issue of responsibility.¹⁷ All proposals for the creation of a commission of inquiry must be evaluated by the Standing Committee on Scrutiny and Constitutional Affairs, or by a special committee created

¹⁰ § 27 Stortingets forretningsorden; § 1 Reglement for åpne kontrollhøringar (FOR-2001-06-11-4957), <https://perma.cc/YGC4-V2AK>.

¹¹ § 1 (2) Reglement for åpne kontrollhøringar (FOR-2001-06-11-4957).

¹² § 19 Stortingets forretningsorden (FOR-2012-06-07-518).

¹³ Sannhets- og forsoningskommisjonen, Stortinget, <https://perma.cc/A3TT-QRA3>; *Kommisjonen for å granske fornorskingspolitikk og urett overfor samer, kvener og norskfinner*, Sannhets- og forsoningskommisjonen, <https://perma.cc/EW7D-X49P>.

¹⁴ *Scandinavian Star-kommisjonen*, Stortinget (June 29, 2018), <https://perma.cc/Q6KN-NTPY>; Dokument 18 (2016–2017), *Rapport til Stortinget fra Stortingets granskingskommisjon for brannen på Scandinavian Star*, Avgitt til Stortingets presidentskap 1. juni 2017, *Hovedrapport*, <https://perma.cc/47GA-U3TT>.

¹⁵ Dokument nr. 24 (2004–2005), *Rapport til Stortingets presidentskap fra Stortingets granskingskommisjon for Mehamn-ulykken*, Avgitt 20. september 2005, <https://perma.cc/98DA-CWM7>.

¹⁶ *Innstilling fra kontroll- og konstitusjonskomiteen om rapport til Stortinget fra kommisjonen som ble nedsatt av Stortinget for å granske påstander om ulovlig overvåking av norske borgere (Lund-rapporten)*, <https://perma.cc/25WD-FDEH>.

¹⁷ § 19 Stortingets forretningsorden.

by Parliament for that purpose. The Standing Committee for Scrutiny and Constitutional Affairs may create a commission without evaluation by anyone else.¹⁸

Parliament establishes the mandate for the commission, as well as the procedures for its work, including whether it is bound by the rules on open hearings. In addition, Parliament may adopt special laws in order to secure that the commission has the right of access to the information that it needs. Once established, commissions of inquiry report directly to Parliament, but operate independently of Parliament. The report is public, unless special concerns require that it be partially or wholly confidential. Parliament should also share the report with the government before Parliament conducts its final evaluation of the report.¹⁹

A. Creation of Legal Basis

All proposals for establishing a commission of inquiry must be heard by the Standing Committee on Scrutiny and Constitutional Affairs. The Committee on Scrutiny and Constitutional Affairs may establish a commission of inquiry on its own.²⁰

B. Subject Matter of Inquiry

A commission of inquiry may be created to investigate any issue of concern to Parliament.²¹ Investigations are not limited by legal proceedings concerning the same facts.

C. Time Limit

As part of establishing a commission of inquiry, Parliament also sets the time limits for the commission's work, including a final reporting date on which the final report must be presented to Parliament. Once the report is presented to Parliament the commission of inquiry has fulfilled its mandate and automatically ceases to exist.²²

D. Investigative Powers

1. On-the-Spot Investigations and Fact-Finding Missions

A commission of inquiry may be created for on-the-spot investigations and fact-finding missions concerning both public administrations and private entities.²³

¹⁸ Id.

¹⁹ Id.

²⁰ Id.

²¹ Id.

²² Id.

²³ Id.

2. *Hearings of Members of the National Government, Including the Prime Minister*

MPs are tried and heard in the Court of Impeachment for any wrongdoing that they have committed, as is the Prime Minister.²⁴ However, they may also be heard by Commissions of Inquiry.²⁵ Members of the national government have a duty to appear.²⁶ Failure to appear or appearing but providing false testimony is punishable with monetary fines or up to six months' imprisonment.²⁷

3. *Hearings of Officials and Public Servants*

Commissions of inquiry may call officials and public servants,²⁸ but when an official at an agency is called, the responsible minister has a right to show up and answer questions on the official's behalf.²⁹ The Commission may proceed to call the official alone behind closed doors following the initial open hearing.³⁰ Officials and public servants at external agencies are called directly, but the responsible minister should be notified and may be present to supplement the response.³¹ The minister may be charged with up to six months imprisonment for providing false or misleading information.³²

4. *Natural Persons*

Committees and commissions may call individual people but cannot force anyone to appear and persons called may refuse to answer questions.³³ However, a commission of inquiry may request a court order for a witness to appear.³⁴ The individual has a right to bring counsel.³⁵ Natural persons who respond have an obligation to answer truthfully.³⁶ In addition, natural persons may ask that the hearing be held behind closed doors.³⁷

²⁴ § 86 Grunnloven.

²⁵ Id. § 75.

²⁶ Lov om særlige Straffebestemmelser m.v. for Personer, som i Henhold til Grundlovens § 75 h indkaldes til at møde for Stortinget (LOV -1897-08-03-2), <https://perma.cc/G8UM-MX39>.

²⁷ § 221 Straffeloven (LOV-2005-05-20-28), <https://perma.cc/Z32E-XGKK>.

²⁸ § 5 Reglement for åpne kontrollhøringer, <https://perma.cc/UE68-R9AL>.

²⁹ Id.

³⁰ Id. § 5(1).

³¹ Id.

³² Lov om særlige Straffebestemmelser m.v. for Personer, som i Henhold til Grundlovens § 75 h indkaldes til at møde for Stortinget (LOV -1897-08-03-2); § 221 Straffeloven (LOV-2005-05-20-28).

³³ § 3 Reglement for åpne kontrollhøringer.

³⁴ §§ 43-44 Domstolloven (LOV 1915-08-13-5), <https://perma.cc/2LSW-6RS4>.

³⁵ § 3 Reglement for åpne kontrollhøringer.

³⁶ Id.

³⁷ Id.

5. *Request Documents*

Commissions of inquiry may request documents from public institutions, natural persons, and private legal entities.³⁸ Documents that are subject to secrecy laws or similar limitations must remain secret while a part of the inquiry; members of the commission have a duty of nondisclosure.³⁹

6. *Expert Reports*

Norwegian law does not specify whether commissions of inquiry have a right to request expert reports. Each commission may, however, be established by an act that serves as the legal basis for the commission's work, and that act could include the right to request expert reports.⁴⁰

E. Publicity

Hearings and meetings of the standing committees and commissions of inquiry, as well as information submitted to them, are as a general rule open to the public; however, the committee members may decide by simple majority to hold hearings behind closed doors and classified information may only be revealed behind closed doors.⁴¹ The position or status of the person heard as a witness does not alone determine whether the hearing is public or secret.

F. Outcomes

Commissions of inquiry produce reports that are delivered to Parliament.⁴² The findings of these reports should propose a resolution or legal action, but are not legally binding on the standing committees or Parliament.⁴³ Once an inquiry is completed, the report must be filed with Parliament as soon as possible.⁴⁴ Parliament then proceeds by acting on the report as it sees fit.

³⁸ §§§ 19, 50 Stortingets forretningsorden.

³⁹ Id. § 19.

⁴⁰ Id.

⁴¹ Id. § 27 para. 5.

⁴² Id. § 19.

⁴³ Id.

⁴⁴ Id.

III. Investigative Powers Attributed to Any Other Parliamentary Body or Committee

All committees may hold hearings on specific issues related to their areas of expertise and are subject to the same rules as the Standing Committee on Scrutiny and Constitutional Affairs.⁴⁵

As noted in Part I, above, there are currently twelve standing committees in the Norwegian Parliament⁴⁶ and four external investigative bodies.⁴⁷

IV. Investigative Powers Attributed to Individual Members of Parliament

Individual MPs do not have investigative powers comparable to a commission of inquiry but may ask members of the government (ministers of the respective departments) questions during the Question and Interpellation (*Spørsmål og spørretimen*) sessions of the Parliament.⁴⁸ In addition, MPs may request documentation from the government, but cannot create bodies of inquiry on their own or ask private or public officials for information.⁴⁹ Ministers may only deny the request for documentation if the document is exempt from public access. MPs may also send written questions to members of the government.⁵⁰

⁴⁵ Id. §§ 14 & 27; §1 Reglement for åpne kontrollhøringer.

⁴⁶ § 12 Stortingets forretningsorden.

⁴⁷ §§ 9,12 Lov om Riksrevisjonen (LOV-2004-05-07-21), <https://perma.cc/D67G-ARBK>; § 3 Lov om Stortingets ombudsmann for forvaltningen (sivilombudsmannsloven) (LOV-1962-06-22-8), <https://perma.cc/H54N-M4SQ>; § 3 Instruks for Forsvarets ombudsmannsnemn (FOR-1952-04-21-4287), <https://perma.cc/RBR6-GSEY>; § 1 Lov om kontroll med etterretnings-, overvåkings- og sikkerhetstjeneste (EOS-kontrollloven) (LOV-1995-02-03-7), <https://perma.cc/STD7-V43C>.

⁴⁸ §§ 72-74 Stortingets forretningsorden.

⁴⁹ Id. §§ 72-74.

⁵⁰ Id. § 70.

South Africa

Hanibal Goitom
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SUMMARY South Africa's Parliament is bicameral, consisting of the National Assembly and the National Council of Provinces. Parliament exercises oversight over the executive body through committees. These include portfolio committees, select committees, public accounts committees, ad hoc committees, and joint committees. Under the Constitution and parliamentary rules, committees conduct investigations on behalf of Parliament and report their findings for debate and action. In doing so, they are accorded various authorities, including the power to summon anyone as a witnesses and to require the production of documents. Failure to appear before a committee without a good cause or failure to provide satisfactory answers to questions posed by them is a prosecutable offense. Although committee meetings and their work products are generally open to the public, they may close their sessions and restrict access to their work products in certain circumstances. Assembly, council, and joint rules bar members from discussing matters pending before a court.

I. Introduction

The South African Constitution provides that "Parliament has the power to conduct oversight of all organs of state, including those at [the] provincial and local government level."¹ It specifically states that the National Assembly, one of the two chambers of the country's Parliament, "must provide for mechanisms— (a) to ensure that all executive organs of state in the national sphere of government are accountable to it; and (b) to maintain oversight of— (i) the exercise of national executive authority, including the implementation of legislation; and (ii) any organ of state."² The oversight function of the National Council of Provinces (the Council), the other chamber of Parliament, reflects its role as an institution that "represents the provinces to ensure that provincial interests are taken into account in the national sphere of government."³ Accordingly, its role is "to exercise oversight over national aspects of provincial and local government."⁴ According to the Constitution, the National Assembly or the Council may

- (a) summon any person to appear before it to give evidence on oath or affirmation, or to produce documents;
- (b) require any person or institution to report to it;

¹ *Oversight*, Parliament of the Republic of South Africa, <https://perma.cc/H8W5-F9DX>.

² South Afr. Const., 1996, § 55, <https://perma.cc/6KHN-38CC>.

³ Id. § 42.

⁴ *Oversight*, Parliament of the Republic of South Africa, *supra* note 1.

- (c) compel, in terms of national legislation or the rules and orders, any person or institution to comply with a summons or requirement in terms of paragraph (a) or (b); and
- (d) receive petitions, representations or submissions from any interested persons or institutions.⁵

Parliamentary committees appear to be responsible for the facilitation of oversight and monitoring of government, and

[o]ne of the most important aspects of the oversight function is the consideration by committees of annual reports of organs of State, and reports of the Auditor-General, [and] [d]epending on the purpose of the oversight, the Committee will either request a briefing from the organ of State or visit it for fact-finding.⁶

Committees of provincial legislative bodies enjoy similar oversight authority over provincial executive authorities and other organs of state at the provincial level.⁷ This report is limited to the committees in the national Parliament.

II. Committees of Inquiry

A. Creation and Legal Basis

The Constitution provides that [t]he rules and orders of the Assembly must provide for ... the establishment, composition, powers, functions, procedures and duration of its committees..."⁸ Similarly, the Constitution states that "[t]he rules and orders of [Council] must provide for ... the establishment, composition, powers, functions, procedures and duration of its committees."⁹

There are different types of committees in the South African Parliament, including portfolio committees, select committees, public accounts committees, members' legislative proposals and petitions committees, internal committees, ad hoc committees, and joint committees.¹⁰

B. Subject Matter of Inquiry and Time Limit

Portfolio committees in the National Assembly are established for each corresponding government department.¹¹ As part of its function, each portfolio committee plays a supervisory role over the relevant government organ, which means that it

⁵ South Afr. Const. §§ 56 & 69.

⁶ *Oversight*, Parliament of the Republic of South Africa, *supra* note 1.

⁷ South Afr. Const. §§ 114 & 115.

⁸ Id. § 57.

⁹ Id. § 70.

¹⁰ *How Parliament Is Structured*, Parliament of the Republic of South Africa, <https://perma.cc/6CUT-EL7Y>.

¹¹ Id.

- (b) must maintain oversight of –
 - (i) the exercise within its portfolio of national executive authority, including the implementation of legislation,
 - (ii) any executive organ of state falling within its portfolio,
 - (iii) any constitutional institution falling within its portfolio, and
 - (iv) any other body or institution in respect of which oversight was assigned to it;
- (c) may monitor, investigate, enquire into and make recommendations concerning any such executive organ of state, constitutional institution or other body or institution, including the legislative programme, budget, rationalisation, restructuring, functioning, organisation, structure, staff and policies of such organ of state, institution or other body or institution;
- (d) may consult and liaise with any executive organ of state or constitutional institution; and
- (e) must perform any other functions, tasks or duties assigned to it in terms of the Constitution, legislation, these rules, the Joint Rules or resolutions of the Assembly, including functions, tasks and duties concerning parliamentary oversight or supervision of such executive organs of state, constitutional institutions or other bodies or institutions.¹²

The National Assembly may establish an ad hoc committee by resolution.¹³ The Speaker may do the same in consultation with the leadership of the parties if the Assembly is in recess for more than 14 days subject to ratification by the Assembly upon its return.¹⁴ An ad hoc committee “may only be established for the performance of a specific task;” when establishing one, the National Assembly or the speaker must specify the task assigned to the committee and “set time frames for— (i) the completion of any steps in performing the task, and (ii) the completion of the task.”¹⁵

The establishing resolution or decision of the speaker will outline the specific powers of an ad hoc committee from the list of general powers of committees stipulated in the Rules of the National Assembly (see Part III(A), below).¹⁶

The committee dissolves when it completes the task for which it was established, fails to complete its task by the date set for completion, or it is dissolved by the Assembly.¹⁷ A dissolved committee may be revived by the speaker or a resolution of the Assembly.¹⁸

¹² Parliament of the Republic of South Africa, Rules of the National Assembly, rule 227 (9th ed. May 26, 2016), <https://perma.cc/33KD-GKCP>.

¹³ Id. rule 253(1)(a).

¹⁴ Id. rule 253(1)(b).

¹⁵ Id. rule 253(4)(b).

¹⁶ Id. rule 253(5).

¹⁷ Id. rule 253(6).

¹⁸ Id.

In the Council, the Rules Committee is required to establish “select committees to deal with legislation, oversight and other matters concerning the affairs of government.”¹⁹ Under the “general powers of committees” clause of the Rules of the Council, subject to the Constitution and other relevant legislation and rules, a select committee has the power to issue subpoenas, conduct public hearings, and determine its own procedure.²⁰

In addition, an ad hoc committee may be established in the Council in the same way as in the Assembly.²¹ Like its counterparts in the Assembly, it may only be created to perform a specific task and the establishing document, be it a Council resolution or Council chairperson’s decision, must specify the timeframe for the completion of the task and its component steps.²² The powers of an ad hoc committee are to be outlined in the establishing document from the list of powers stipulated under the “general powers of committees” clause of the Rules of the Council (see Part III(A), below).²³ The ad hoc committee is dissolved when it accomplishes the task for which it was created or is dissolved by the Council before reaching that point.²⁴

The Assembly has a standing committee on public accounts, which “acts as Parliament’s watchdog over the way taxpayers’ money is spent by the Executive.”²⁵ Representatives of the executive branch are “regularly called by this committee to report and account for expenditure.”²⁶

In addition to the committees in each chamber of Parliament discussed above, the Assembly and the Council have or may establish various joint committees. One such committee is the Joint Committee on Oversight of Security Matters. This Committee “has oversight of the South African National Defence Force and the South African Police Service to give effect to the principles of transparency and accountability as envisaged in section 199(8) of the Constitution.”²⁷ Similarly, the Joint Standing Committee on Intelligence performs oversight functions relating to the country’s intelligences institutions.²⁸ In addition, Parliament may establish ad hoc joint committees to perform specific tasks.²⁹ The document establishing an ad hoc committee must set the time frame for completion of the task and its component steps.³⁰ An ad hoc committee

¹⁹ Parliament of the Republic of South Africa, Rules of the National Council of Provinces, rule 151(1) (9th ed. 2008), <https://perma.cc/W9XV-NX6R>.

²⁰ Id. rule 103(1).

²¹ Id. rule 160.

²² Id.

²³ Id. rules 103(5) & 103(3).

²⁴ Id. rule 160(6).

²⁵ *How Parliament Is Structured*, supra note 10; Rules of the National Assembly, rule 243.

²⁶ *How Parliament Is Structured*, supra note 10.

²⁷ Joint Rules, rule 119 (5th ed. Nov. 2009), <https://perma.cc/BJ9X-YWHL>.

²⁸ Id. rule 120.

²⁹ Id. rule 138.

³⁰ Id.

dissolves when it completes its task, fails to complete its task within the time frame assigned, or is dissolved by the Assembly and the Council earlier.³¹

Further, the Assembly and the Council may by resolution establish any joint committee, whose functions must be stipulated in the establishing resolution.³²

III. Investigative Powers

A. Powers of Committees

The Assembly Rules accord committees subpoena powers to summon any person to appear before them and may “receive petitions, representations or submissions from interested persons or institutions.”³³ They may also “permit oral evidence on petitions, representations, submissions and any other matter before [them]” and conduct public hearings.³⁴ In addition, they are free to “exercise any other powers assigned to [them] by the Constitution, legislation, the other provisions of these [R]ules or resolutions of the Assembly.”³⁵ The same is true for committees in the Council.³⁶ Parliamentary committees, depending on the purpose of the oversight, may also conduct fact-finding visits.³⁷

The powers of a joint committee are enumerated in the general powers clause of the Joint Rules of Parliament. These powers are similar to the powers of committees in the Assembly and the Council.³⁸

Failure to honor summonses issued by a parliamentary committee without sufficient cause is an offense subject to a fine, custodial sentence, or both.³⁹ Barred acts include failure to attend at the time and place requested, failure to remain in attendance until excused, failure to answer “fully and satisfactorily” all questions asked, failure to produce documents, obstructing witnesses from appearing or providing information, or inducing a witness to provide false evidence.⁴⁰

³¹ Id.

³² Id. rules 142 & 144.

³³ Rules of the National Assembly, rule 167(b).

³⁴ Id. rule 167(c), (d).

³⁵ Id. rule 167(i).

³⁶ Rules of the National Council of Provinces, rule 103.

³⁷ *Oversight*, Parliament of the Republic of South Africa, *supra* note 1.

³⁸ Joint Rules, rule 32.

³⁹ Powers, Privileges and Immunities of Parliament and Provincial Legislatures Act 4 of 2004, §§ 14 & 17 (June 7, 2004), <https://perma.cc/K3R2-3MTY>.

⁴⁰ Id. § 17.

B. Publicity

As a general rule, meetings of committees and subcommittees are open to the public.⁴¹ The Constitution requires that Parliamentary committee meetings be open, but allows for regulating access in certain limited instances.⁴² For instance, a closed session is permitted if doing so is permitted by law or Parliamentary rules, the matter under consideration is “of a private nature that is prejudicial to a particular person,” or the matter is deemed confidential under specific legislation.⁴³ Similar rules apply to joint committees.⁴⁴

As a general rule, all documents “officially before, or emanating from, a committee or subcommittee are open to the public.”⁴⁵ Although there does not appear to be a rule barring parliamentary committees from requesting and receiving documents, there are rules precluding committees from making public certain documents they collect in the course of exercising their functions.⁴⁶ This preclusion includes “any document placed before or presented to the committee or subcommittee as a confidential document and declared by it as a confidential document.”⁴⁷ However, the confidential document in question must be one that contains “private information that is prejudicial to a particular person,” is protected under parliamentary privilege or considered by law as privileged information, is deemed confidential under provisions of legislation, is under media embargo so long as the embargo is in place, or is subject to another valid justification for treating it as confidential.⁴⁸

C. Matters Sub Judice

The Rules of the Assembly bar a member from discussing pending court cases, stating that “[n]o member may reflect upon the merits of any matter on which a judicial decision in a court of law is pending.”⁴⁹ The same rule applies to discussions of urgent matters of national public importance held by the Assembly.⁵⁰ Similarly, the Council prohibits its members from discussing a matter pending before court while addressing the Council.⁵¹ However, it is unclear if this extends to committees and, if so, to what extent it does. As is the case with the Council Rules, Joint Committee Rules bar members from discussing a matter pending before a court.⁵²

⁴¹ Rules of the National Assembly, rule 184; Rules of the National Council of Provinces, rule 110.

⁴² South. Afr. Const. §§ 59 & 79.

⁴³ Rules of the National Assembly, rule 184; Rules of the National Council of Provinces, rule 110.

⁴⁴ Joint Rules, rule 47.

⁴⁵ Rules of the National Assembly, rule 189; Rules of the National Council of Provinces, rule 114.

⁴⁶ Rules of the National Assembly, rule 189; Rules of the National Council of Provinces, rule 114.

⁴⁷ Rules of the National Assembly, rule 189; Rules of the National Council of Provinces, rule 114.

⁴⁸ Rules of the National Assembly, rule 189; Rules of the National Council of Provinces, rule 114.

⁴⁹ Rules of the National Assembly, rule 89.

⁵⁰ Id. rule 130.

⁵¹ Rules of the National Council of Provinces, rule 48.

⁵² Joint Rules, rule 14Q.

D. Outcomes

It appears that committees do not have formal decision-making authority. Their role seems limited to advising Parliament on issues that they have studied or investigated.⁵³

IV. Exercising the Power of Inquiry through Other Means

As noted in the Introduction section, under the South African Constitution, parliamentary committees enjoy investigative powers. This is also the case under the general powers of committees' clauses of both the National Assembly Rules and the Council Rules.⁵⁴ The same is true for joint committees.⁵⁵ It does not appear that individual members of Parliament enjoy investigative powers.

⁵³ Parliament of the Republic of South Africa, *Report of the Independent Panel Assessment of Parliament* 38 (Feb. 2014), <https://perma.cc/Y87U-A2Z7>.

⁵⁴ Rules of the National Assembly, rule 167; Rules of the National Council of Provinces, rule 103.

⁵⁵ Joint Rules, rule 32.

Switzerland

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SUMMARY As part of its oversight function of the executive branch and other federal bodies, the Swiss Federal Assembly (the Swiss parliament) may appoint a joint Parliamentary Investigation Committee (Parlamentarische Untersuchungskommission, PUK) of both chambers of parliament to investigate “events of importance.” PUKs have the right to information and to inspect documents, and the power to conduct investigations. They may access documents that are classified as secret or confidential and can formally summon persons and witnesses and use the federal or cantonal police to force their appearance at the meeting. The legally nonbinding findings and recommendations of the PUK are published.

General supervisory committees have the same investigative powers as PUKs. Individual members of Parliament have the right to be provided with information by the executive and to inspect documents on any federal matter provided this is required for the exercise of their parliamentary mandates.

I. Parliament’s Right of Inquiry – General Framework

The main legislative body in Switzerland is the Federal Assembly—the Swiss parliament. The Federal Assembly is made up of two bodies with equal rights, the National Council (Nationalrat) and the Council of States (Ständerat).¹ The National Council represents the people, whereas the Council of States represents the 26 Swiss cantons (states).² Besides engaging in the legislative process, the Federal Assembly exercises oversight of the Federal Council (the seven-member Swiss government) and the federal administration, the federal courts, and other bodies entrusted with carrying out the tasks of the Confederation.³

Generally, in order to exercise its oversight function, the legislature must be informed about the work of the government. For that purpose, the legislative branch forms committees to gather information.⁴ Committees have the right to information and to inspect documents, and the power to conduct investigations.⁵ Individual members of parliament also have the right to be provided

¹ Bundesverfassung der Schweizerischen Eidgenossenschaft [BV], Apr. 18, 1999, Systematische Rechtssammlung [SR] 101, art. 148, <https://perma.cc/FKL3-KJ9Z> (original), <https://perma.cc/3ZVX-UCXX> (English translation).

² Id. arts. 149, 150.

³ Id. art. 169; Bundesgesetz über die Bundesversammlung [Parlamentsgesetz] [ParlG], Dec. 13, 2002, SR 171.10, art. 26, <https://perma.cc/QUH8-4VGA> (original), <https://perma.cc/7ZNH-NDRV> (English translation).

⁴ BV, art. 153; ParlG, arts. 42, 150, 153.

⁵ BV, art. 153, para. 4; ParlG, art. 45.

with information by the executive and to inspect documents on any matter of relevance to the Confederation, provided it is required for the exercise of their parliamentary mandates.⁶

II. Committees of Inquiry in Parliament

A. Creation and Legal Basis

The Constitution charges the Federal Assembly with oversight of the federal authorities, which entails the ability to appoint a joint Parliamentary Investigation Committee (Parlamentarische Untersuchungskommission, PUK) of both chambers of parliament.⁷ The PUK is appointed by a simple federal decree⁸ following consultation of the Federal Council.⁹ The federal decree is adopted on the initiative of a member of parliament or a parliamentary group, or by way of a committee initiative.¹⁰ It must be passed by a majority in both chambers of parliament.¹¹

B. Subject Matter of the Inquiry

The Parliament Act provides that a Parliamentary Inquiry Committee (PUK) may be established “for the purposes of investigating the circumstances or of obtaining additional information on which to base its assessment [of events of importance].”¹² The Parliament Act does not define “events of importance.” Its meaning is up to the discretion of the Federal Assembly.¹³ The federal decree establishing the PUK determines the mandate of the investigation committee and the financial resources available to it.¹⁴

A PUK may be appointed even if the same facts are subject to civil or administrative court proceedings or to preliminary investigations and court proceedings under criminal law.¹⁵ Disciplinary or administrative inquiries at the federal level may only be initiated with the authorization of the PUK.¹⁶ Ongoing disciplinary or administrative inquiries must be suspended until their continuation is authorized by the PUK.¹⁷

⁶ ParlG, art. 7.

⁷ ParlG, art. 163.

⁸ A “simple federal decree” is a federal decree that is not subject to a referendum. See BV, art. 163, para. 2.

⁹ ParlG, art. 163, para. 2.

¹⁰ Id. art. 6, para. 1, art. 45, para. 1, art. 62, para. 2.

¹¹ Id. art. 83.

¹² Id. art. 163, para. 2.

¹³ Nicole Schwager, *Artikel 163*, in *Parlamentsrecht und Parlamentspraxis der Schweizerischen Bundesversammlung zum Parlamentsgesetz (ParlG) vom 13. Dezember 2002* at 1114 (Martin Graf et al. eds., 2014).

¹⁴ ParlG, art. 163, para. 2.

¹⁵ Id. art. 171, para. 2.

¹⁶ Id. art. 171, para. 3.

¹⁷ Id.

C. Time Limit

PUKs are temporary committees. They cease to exist when their mandate is fulfilled.

D. Investigative Powers

1. *On-the-Spot Investigations and Fact-Finding Missions*

A PUK has the power to conduct investigations and inspections to fulfill its mandate.¹⁸ That power is not subject to any limitations or formal requirements.¹⁹

2. *Questioning of Persons and Witnesses*

PUKs may question persons that are required to provide information to them and formally summon them if they refuse to appear.²⁰ These persons include members of the Federal Council (Swiss government),²¹ public servants, and natural persons.²² If a person that has been summoned fails to appear without an excuse, the PUK may use the federal or cantonal police to force the appearance at the meeting.²³ Such persons may file an objection against the summons or the forced appearance with the president of the council to which the PUK president making the decision belongs. The decision on the objection is final and cannot be appealed.²⁴

Providing false testimony is subject to the penalties set out in the Swiss Criminal Code for perjury, meaning a custodial sentence of up to five years or a fine.²⁵ Refusing to make a statement or providing documents without lawful reason is punishable by a fine.²⁶

3. *Request of Documents and Expert's Reports*

The PUK has the general power to request and inspect documents to fulfil its mandate.²⁷ There are no limitations to this right, meaning that the PUK may also access documents that are classified as secret or the disclosure of which to unauthorized persons may be seriously

¹⁸ BV, art. 153, para. 4; ParlG, art. 45, para. 1(d).

¹⁹ BV, art. 169, para. 2; ParlG, art. 166, para. 1 in conjunction with art. 153, paras. 1, 2.

²⁰ ParlG, art. 166, para. 1 in conjunction with art. 153, para. 3.

²¹ Unlike other countries, Switzerland does not have one person who heads the country. The seven-member Federal Council has a rotating presidency, with each president being elected for a term of one year. See BV, art. 176, para. 2. See also *Tasks of the Federal Presidency*, The Federal Council, <https://perma.cc/789U-SGFH>.

²² ParlG, art. 150, para. 1.

²³ Id. art. 153, para. 3.

²⁴ Id. art. 153, para. 4.

²⁵ Id. art. 170; Schweizerisches Strafgesetzbuch [StGB], Dec. 21, 1937, SR 311.0, as amended, art. 307, <https://perma.cc/3Y2J-ATRG> (original), <https://perma.cc/6PBA-RTU9> (English translation).

²⁶ ParlG, art. 170, para. 2; StGB, art. 292.

²⁷ BV, art. 153, para. 4; ParlG, arts. 45, 150, art. 153, paras. 1, 2, art. 154, art. 166, para. 1.

detrimental to Swiss national interests.²⁸ The PUK may appoint an investigating officer to gather evidence; however, persons questioned by him or her have the right to refuse to hand over documents.²⁹ The federal and cantonal authorities are required to provide the PUK with administrative and legal assistance.³⁰

In addition, the PUK may consult external experts on the matter before them.³¹ If possible, external experts must submit their written testimony in two of Switzerland's four official languages.³²

E. Publicity

Any person who participates in meetings and interviews conducted by the PUK is subject to an obligation of secrecy until the report for the Federal Assembly is published.³³ In particular, persons questioned are not permitted to report to their superiors that they were questioned or that documents were requested.³⁴ After the report has been submitted, the general rules for confidentiality of committees apply, meaning that the minutes and other documents of the committees are classified; however, the committees may decide to declassify them and make the documents, with the exception of the minutes, publicly available.³⁵ Results of committee investigations and deliberations are made publicly available.³⁶ Committees must generally ensure that secrecy is preserved, in particular by providing information that is subject to official secrecy as defined in article 8 of the Parliament Act to only one subcommittee.³⁷ The inspection of files during the protective period of 50 years must be approved by the president and the vice-president of the PUK.³⁸

²⁸ BV, art. 169, para. 2; ParlG, art. 166, para. 1 in conjunction with art. 154, paras. 1, 2.

²⁹ ParlG, art. 166, paras. 2, 4.

³⁰ Id. art. 165, para. 2.

³¹ Id. art. 45, para. 1(c).

³² Id. art. 46, para. 3.

³³ Id. art. 169, para. 1.

³⁴ Id.

³⁵ Id. art. 169, para. 2, art. 47a.

³⁶ Id. art. 48, art. 158, para. 3.

³⁷ Id. art. 150, para. 3, art. 153, para. 7.

³⁸ Id. art. 169, para. 3; Bundesgesetz über die Archivierung [Archivierungsgesetz] [BGA], June 26, 1998, SR 152.1, arts. 9, 11, <https://perma.cc/97UU-RAPZ> (original), <https://perma.cc/25PB-QDMH> (English translation).

F. Outcomes

The PUK publishes a report of its findings “unless this is contrary to interests that are worthy of protection.”³⁹ It can only make legally nonbinding recommendations.⁴⁰ The authority to which the recommendations are addressed must inform the PUK about the implementation of the recommendations.⁴¹

III. Investigative Powers Attributed to Any Other Parliamentary Body or Committee

General supervisory committees have the same investigative powers as PUKs.⁴²

IV. Investigative Powers Attributed to Individual Members of Parliament

Individual members of Parliament have the right to be provided with information by the executive and to inspect documents “on any matter of relevance to the [Swiss] Confederation, provided this is required for the exercise of their parliamentary mandates.”⁴³ Excluded are documents from the joint reporting procedure and deliberations in Federal Council meetings that are classified as confidential or secret or the disclosure of which to unauthorized persons may be detrimental to Swiss national interests, and documents that are treated as confidential for the purposes of protecting personal privacy.⁴⁴ If there is disagreement between the member and the Federal Council as to whether the requested information is necessary for the exercise of the parliamentary mandate, the member may call on the Presiding College of his or her respective chamber of parliament to mediate and, if necessary, make a final decision.⁴⁵

³⁹ ParlG, art. 158, para. 3.

⁴⁰ Id. art. 158, para. 1.

⁴¹ Id. art. 158, para. 2.

⁴² Id. arts. 150, 153–156, art. 166, para. 1.

⁴³ Id. art. 7, para. 1.

⁴⁴ Id. art. 7, para. 2.

⁴⁵ Id. art. 7, paras. 3, 4.

Turkey

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SUMMARY The Parliament of Turkey uses its right of inquiry and supervision through the procedures of parliamentary inquiry, general debate, parliamentary investigation, and written question. Parliamentary inquiry is the main procedure at the disposal of members of parliament to conduct in-depth research and examinations of matters that are of interest to the political and legislative process. Parliamentary inquiries are conducted by ad hoc committees of inquiry that are formed and mandated specifically to examine the subject matter of the parliamentary inquiry and prepare a report that is then debated in a plenary session. Minutes of the committees and their final reports are published and publicly available. Committees of inquiry have the power to request information from public and private parties, however, they lack the power to compel persons to testify or disclose information. The mandates of committees of inquiry must be of a limited term, and state secrets and trade secrets cannot be the subject matter of inquiry. The Parliament is also forbidden by the Constitution from launching a parliamentary inquiry into a subject that is directly relevant to the judiciary's use of its powers in an ongoing case. Apart from ad hoc committees of inquiry, the standing Committee for the Examination of Human Rights has investigative powers similar to committees of inquiry in the field of human rights practices and complaints. Individual members of parliament may use their right of inquiry through the procedure of a written question, which is a formal inquiry about actions of the executive branch that the respondent presidential deputy or minister must answer in 15 days.

I. Parliament's Right of Inquiry: General Framework

Under the Constitution of Turkey, the Grand National Assembly (Parliament) uses its right of inquiry and supervision through four procedures, namely, parliamentary inquiry, general debate, parliamentary investigation, and written question.¹ The details of these procedures of inquiry are provided in the Parliamentary Rules of Procedure (PRP).²

A. Parliamentary Inquiry (Committees of Inquiry)

Parliamentary inquiries are conducted by mandating a committee of inquiry (CI) for a limited term, by the vote of a simple majority of the members of parliament (MPs) present in the plenary session, to write a report on a certain subject matter that is of interest to the Parliament in fulfilling

¹ Constitution of Turkey of 1981, as amended [Const.], art. 98, <https://perma.cc/HK5Q-ZYQC> (official English translation).

² Parliamentary Rules of Procedure [PRP], as amended, <https://perma.cc/A6AR-E73P> (official English translation).

its duties of political supervision of the government, upon the proposal of at least 20 MPs. After the CI finalizes its findings, they are published and debated in a general debate procedure.³

B. Other Procedures

The three other procedures provided in the Constitution are the general debate, written question, and parliamentary investigation. General debate is a procedure whereby 20 or more MPs can propose a debate to be held in the plenary session on a specific topic that has societal importance or is relevant to the activities of the state.⁴ If the proposal of the MPs is adopted by a plenary session, a general debate on the topic is entered into a special agenda and is held in a plenary session between two to seven days after the adoption of the proposal.⁵ A written question is a political supervision procedure whereby an MP can request information from deputies of the President of the Republic or ministers regarding the actions of the executive branch by submitting the question to the Speaker of the Parliament in written form.⁶ A written question must be answered by the relevant presidential deputy or minister within 15 days of its submission.⁷ Lastly, the parliamentary investigation procedure constitutes the first step for the impeachment of a sitting President of the Republic, his or her deputies, and ministers. Parliamentary investigation committees may be established by a vote of three fifths of the total number of MPs for the investigation of the President for crimes that would bar the incumbent from holding the office, and the majority of the total number of MPs for investigating presidential deputies and ministers for crimes that are related to their duties.⁸ Upon the completion of the parliamentary investigation committee's report, a plenary session holds a debate and may decide, by a vote of two thirds of the total number of MPs, to submit the subject of the investigation for trial before the Constitutional Court, which acts as the Supreme Criminal Tribunal.⁹

II. Committees of Inquiry

A. Creation

CIs may be mandated by a written motion of at least 20 MPs or the parliamentary group of a political party addressed to the Speaker of the Parliament.¹⁰ A preliminary debate on the motion is then entered into the agenda, and the motion is then debated and voted on by a show of hands

³ PRP art. 105(2); Grand Nat'l Assembly of Turkey, *Yeni Sisteme Göre Yasama El Kitabı* [Handbook on the Legislature], § 102 (2018), <https://perma.cc/RVP4-5TMA> (in Turkish).

⁴ PRP art. 102(1); Grand Nat'l Assembly of Turkey, *supra* note 3, § 93.

⁵ PRP art. 103; Grand Nat'l Assembly of Turkey, *supra* note 3, §§ 96-97.

⁶ PRP arts. 96-100; Grand Nat'l Assembly of Turkey, *supra*, note 3, § 87.

⁷ PRP art. 99.

⁸ Const. arts. 105(2)-(3), 106(5); Grand Nat'l Assembly of Turkey, *supra* note 3, §§ 103-107.

⁹ Const. art. 148(6).

¹⁰ Grand Nat'l Assembly of Turkey, *supra* note 3, § 100. Political parties that have at least 20 MPs in the Parliament may form parliamentary groups, PRP art. 18(1).

in a plenary session.¹¹ If the motion passes, a CI is established. The number of members of the CI, the term of its mandate, and whether or not the CI will have authority to pursue its work outside of the capital city (Ankara) will be decided by the plenary session by voting on the Presidency's proposal on the matter.¹² Members of the CI must be MPs, and political parties are represented in the membership of the CI in proportion to the seats they have in the Parliament.¹³

B. Subject Matter of the Inquiry

A plenary session may decide to mandate a CI on any subject matter, with several exceptions. The PRP explicitly excludes state secrets and trade secrets from the ambit of CIs.¹⁴ The fact that neither state secrets nor trade secrets are defined in legislation has caused the limits of the CI's powers of inquiry in matters potentially touching these issues to remain blurred.¹⁵ Nonetheless, third parties such as banks and ministries have reportedly rejected certain requests for information on the grounds that the information is a trade secret or a state secret (respectively).¹⁶ This state of affairs appear to be exacerbated by the CIs' lack of power to compel the disclosure of information.¹⁷

Furthermore, the Constitution provides that "no questions shall be asked, debates held, or statements made [in the Parliament] relating to the exercise of judicial power concerning a case under trial."¹⁸ The effect of this constitutional provision on the powers of CIs is not entirely clear; it appears that the provision does not inhibit CIs from making inquiries into subject matter that is relevant to ongoing lawsuits if the subject of the inquiry does not directly implicate and preempt the judiciary's power to make its own findings concerning the matter.¹⁹

¹¹ PRP art. 104(3); Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

¹² PRP art. 104(3); Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

¹³ PRP art. 104(3); Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

¹⁴ PRP art. 105(6).

¹⁵ See generally *Meclis Araştırması Komisyonlarının Çalışma ve Rapor Sürecini Değerlendirme Çalıştayı* [Report on the Workshop on the Evaluation of Working and Reporting Procedures of Parliamentary Committees of Inquiry (Report on the Workshop)] (Grand Nat'l Assembly of Turkey 2015), <https://perma.cc/9C83-T4BT> (in Turkish).

¹⁶ Salih Sağlam, *Komisyonun Yetkilerini Etkin Kullanması Sorunu*, in *Report on the Workshop* at 20; Ali Fuat Gökçe, *Türkiye Büyük Millet Meclisi'nin Yürütmeyi Denetlemesinde Meclis Araştırması Komisyonlarının İşlevselliği*, 11 *Yasama Dergisi* 76, 77 (2009).

¹⁷ Ali Fuat Gökçe, at 84-89; Salih Sağlam, at 20.

¹⁸ Const. art. 138(3).

¹⁹ Batıkan Aksoy in *Report on the Workshop*, at 146; Ali Fuat Gökçe, *supra* note 16, at 88-89; see also Ozan Ergül, *Aynı Olaya İlişkin Meclis Araştırması ile Adli Soruşturmanın Bağdaşmazlığı Üzerine*, 69 *J. of Union of Turkish B. Ass'ns* 125 (2007), arguing that the constitutional provision, as it stands, must be interpreted broadly to forbid CIs from making inquiries into a matter that has become the subject of adjudication generally.

C. Time Limit

Parliamentary committees of inquiry must complete their inquiries within three months.²⁰ A peremptory extension of one month may be made to the mandate of a committee that could not finish its inquiry in the three-month term.²¹ If the inquiry is not finished by the end of the mandate or a one-month extension, a general debate must be held on the reasons why the inquiry could not be finished, or the findings the committee has already made must be opened, in a plenary session within 15 days of the end of the mandate or an extension period. The general debate may be ended with the plenary session deciding to rest satisfied or a new committee of inquiry may be mandated on the same subject matter.²²

D. Investigative Powers Granted to Committees of Inquiry

The PRP explicitly authorizes CIs to request information from ministries and a list of public institutions, to request their employees to testify, and to make field investigations on their premises.²³ Although the institutions are specified by the list, in practice, it appears that this authority extends to all public institutions that are funded under the central government budget as listed in the four schedules annexed to Law No. 5018 on Management and Control of Public Finance.²⁴

The PRP also authorizes CIs to consult subject matter experts as they see fit.²⁵ In practice, the relevant provisions of the PRP appear to be interpreted broadly to allow the CI to request information from any third party that it considers relevant to the subject matter of the inquiry.²⁶ The CI, however, does not have the power to compel either public bodies or third parties to provide testimony.²⁷

²⁰ PRP art. 105(2).

²¹ *Id.*

²² Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

²³ The listed public institutions are as follows: Administrations with general and special budgets, local administrations, neighborhood administrations, universities, TRT (public radio and television institution), public economic enterprises, banks, and other institutions established by special laws or based on authority granted by special laws, public professional organizations, and private societies beneficial to the public. PRP art. 105(3).

²⁴ Kamu Mali Yönetimi ve Kontrol Kanunu, Law No. 5018, O.G. No. 25326, Dec. 10, 2003, <https://perma.cc/L9VE-LF64> (in Turkish). Schedules (I), (II), (III), and (IV) of Law No. 5018 include, respectively, public administrative bodies funded by the general budget, administrative bodies with special budgets (including public universities), regulatory authorities, and social security institutions. Salih Sağlam, at 19.

²⁵ PRP art. 105(4).

²⁶ See, e.g., Salih Sağlam, at 20.

²⁷ Ali Fuat Gökçe, *supra* note 16, at 83.

E. Process and Outcome

Procedural rules concerning the meetings of standing committees are applicable to CIs with the necessary changes.²⁸ Accordingly, the meetings of CIs are open to all MPs, presidential deputies, ministers, deputy ministers and high-level public administrators, but only members of the committee may vote.²⁹ The Parliament's public television broadcaster is required to report on the meetings of the CIs, although it does not have to provide a live broadcast.³⁰ The quorum in CI meetings is one third of the total number of members, and decisions are made by a simple majority of members present.³¹ Minutes of meetings and the final reports of CIs are published on the public websites of the committees.

Following the completion of a CI's final report, its findings are debated in a plenary session, in accordance with the general debate procedure. The CI's report is published and distributed to MPs, and a general debate is held.³² The general debate is open to the public and broadcast live by the parliamentary broadcaster, unless the plenary decides to move to a closed meeting under the general procedural rules.³³ As discussed in Section II. C. above, the general debate may be ended with the plenary session deciding by a simple majority to rest satisfied or to mandate a new committee of inquiry on the same subject matter.³⁴

III. Investigative Powers Attributed to Other Parliamentary Bodies or Committees

The PRP establishes 16 standing expertise committees that are exclusively tasked with debating bills proposed by MPs that fall under their area of expertise and amending, accepting, or rejecting them. Standing committees prepare reports on the bills to a plenary session that include the justifications for any amendment made to a bill in the committee and dissenting opinions of committee members. Although the standing committees are limited to their tasks in the legislative process, the Committee for the Examination of Human Rights (CEHR) – which is one of the 16 standing committees provided by the PRP – exceptionally has special powers of investigation similar to CIs.

The tasks and powers of the CEHR are circumscribed by the Law on the CEHR.³⁵ Besides its regular tasks related to the legislative process as a standing committee, the CEHR is tasked with, among other things, examining the compliance of the government's human rights practices with Turkey's laws, the Constitution, and international treaties, and conducting research to this end;

²⁸ See generally *Report on the Workshop*.

²⁹ PRP art. 31.

³⁰ Türkiye Büyük Millet Meclisi Televizyonu Yönetmeliği [Regulation on Parliamentary TV, RPTV], art. 6(1)(b), O.G. No. 26892, May 31, 2008, <https://perma.cc/L62B-4B5R> (in Turkish).

³¹ PRP art. 27(2).

³² Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

³³ RPTV art. 6(1)(a); PRP art. 32.

³⁴ Grand Nat'l Assembly of Turkey, *supra* note 3, § 102.

³⁵ İnsan Haklarını İnceleme Komisyonu Kanunu, Law No. 3686, O.G. No. 20719, Dec. 8, 1990, as amended, <https://perma.cc/T3KC-9WG5> (in Turkish).

investigating claims of human rights violations that are submitted to it; observing human rights violations in other countries and reporting them to the Parliament or to parliamentary forums; and preparing annual reports regarding human rights issues at home and abroad.³⁶ To fulfill these tasks, the CEHR may request information from “ministries, administrations with general and special budgets, local administrations, neighborhood administrations, universities, and other public and private institutions” and invite responsible employees thereof to give their testimony.³⁷ The CEHR is also authorized to obtain information from any experts that it deems relevant and to work outside of Ankara.³⁸ Importantly, like CIs, the CEHR does not have the power to compel any person or institution to submit information.

IV. Investigative Powers Held by Individual Members of Parliament

The only formal investigative tool that can be used by an individual MP is the written question procedure. For details on the procedure, see Section I. B. above.

³⁶ Id. art. 4.

³⁷ Id. art. 5(1).

³⁸ Id. art. 5(2).